

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 06/12/2026

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

*HEARING ON MOTION IN RE: ATTORNEY'S FEES ON APPEAL OF DISCOVERY SANCTIONS ORDER |
THE COURT ON ITS OWN MOTION CONTINUES THE HEARING TO 6/12/26 PER TR.

FILED BY:

TENTATIVE RULING:

Before the Court is the Motion of Defendant and Cross-Plaintiff MICHAEL CISTERNINO (“Cisternino”) for Attorneys’ Fees on Appeal of Discovery Sanctions Order (“Motion”) filed by Plaintiff XIAO YI ZHENG (“Zheng”) and Sanctions Debtor DAVID STURGEON-GARCIA (“Attorney Sturgeon”). The motion is **granted**.

Cisternino is the prevailing party entitled to reasonable attorneys’ fees incurred in defense of the appeal filed on February 23, 2024, by Attorney Sturgeon on behalf of himself and Zheng (the “Appeal”). (*Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1152.)

Under California law, a prevailing party entitled to fees is awarded a reasonable amount as determined by calculating the “lodestar,” absent exceptional circumstances. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1097.) There is a three-step process for the Court to calculate the lodestar: (1) determine the number of hours reasonably expended; (2) determine the reasonable hourly rate to apply to those hours; and (3) exercise its discretion to increase or decrease the amount of fees determined in the first two steps. (*Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) “Reasonably spent” means that time spent ‘in the form of inefficient or duplicative efforts is not subject to compensation.’” (*Horsford v. Bd. Of Trustees of California State Univ.* (2005) 132 Cal.App.4th 359, 394 (citations omitted).)

I. REASONABLE HOURS

Zheng and Attorney Sturgeon filed an appeal that put in issue hundreds of discovery objections. Aspects of their Appeal were deemed “meritless” by the Court of Appeal after full briefing by both sides.

To date, neither Zheng nor Sturgeon has complied with the underlying discovery order, which is now over two years old. Despite having been provided with detailed time records showing each task undertaken to respond to the Appeal and the time actually spent and billed on each of those tasks down to the tenth of an hour, neither Attorney Sturgeon nor Zheng challenge even a single entry as having been duplicative, inefficient, or otherwise unreasonable. This is despite the fact

that the moving papers specifically and clearly directed them both to the evidence, here the actual bills sent to and paid by Cisternino for the work made necessary by the Appeal. (Declaration Of Daniel A. King In Support Of Motion for Attorney's Fees on Appeal of Discovery Sanctions Order ("King Decl."), ¶¶ 7-9, Exh. C.) The Court finds the unchallenged hours contained in the billings reasonable in their entirety, in light of the scope of the Appeal and the work reasonably necessary to respond to it. It further finds the time necessary to respond to the Appeal was

extended as a result of Zheng and Attorney Sturgeon's failure to provide a proper record for the Court of Appeal and their failure to provide the Court of Appeal with an accurate disclosure of the facts relevant to the Appeal in their opening brief, both in violation of the Rules of Court. (King Decl., ¶ 15; Request for Judicial Notice, Item Nos. 17-20.)

In total, the Court finds that 48.2 Attorney Hours were reasonable in the successful

defense of the appeal. (King Decl. ¶¶ 708, Exh. C) These hours fall into the following categories:

Record matters and case management, including review of briefing, evidence, and argument filed in the Trial Court, along with evaluation of documents contained in Appellants' designation of record on appeal and preparation of Respondent's Designation	10.5 Hours
Research, Draft, Review and Revise Respondent's Brief, Including	33.0 Hours

Evaluation of Appellants' Opening Brief	
Evaluate Court of Appeal's Tentative Ruling and Prepare for Oral Argument Demanded by Appellants:	2.0 Hours
Required correspondence with Court of Appeal and client regarding Appeal pending for nearly two years.	2.7 Hours
	Total 48.2 Hours

In addition to time reasonably spent in the successful defense of the Appeal, Cisternino is also entitled to time reasonably spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declarations in Support, Reply, and other papers in support of the instant motion. As with the hours expended in the successful defense of the Appeal, these hours were detailed to both Zheng and Attorney Sturgeon; neither has challenged any of the hours sought as unnecessary or unreasonable, despite each having actual notice of and each actually responding to the moving papers. The Court finds that Cisternino reasonably incurred 17.6 hours to research, draft, review, and revise the Notice of Motion and Motion for Attorneys' Fees on Appeal of Discovery Sanctions Order, the Memorandum in Support of that motion, the Request for Judicial Notice, and the Declaration of Daniel A. King in support. (King Decl. ¶¶ 9-10.)

These hours fall into the following categories:

Research, draft, review and revise Notice of Motion and Motion:	1.5 Hours
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Research, draft, review and revise Memorandum in Support:	10.1 Hours
Research, draft, review, and revise Declaration of Daniel A. King:	2.0 Hours
Research, draft, review, and revise Request for Judicial Notice:	4.0 Hours
	Total 17. 6

In addition to this time, the Court also finds that an additional six (6) hours were reasonably incurred in preparing a Reply and additional papers for the Court, as detailed in Paragraph 10 of the King Declaration, for a total of 23.6 hours reasonably incurred in the prosecution of the instant Motion.

II. REASONABLE RATE

The Court's next task is to determine the reasonable rate to apply to the hours it found were reasonably incurred. (*Christian Research Inst., supra*, 165 Cal.App.4th 1315 at 1321.) As the Supreme Court has explained, the hourly rate called for under the law is the prevailing rate for private attorneys in the community where the court sits, conducting non-contingent litigation of the same type. (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1133.) It must then apply that rate to the hours found reasonable in the first step, the product of which is often referred to as the "raw lodestar."

Cisternino was billed at a rate between \$525 and \$545 per hour for work on the Appeal and at a rate of \$545 per hour for work on the instant motion, as detailed in the Declaration of Daniel A. King filed in support of the Motion. At those rates, the raw lodestar would be:

\$26,269	For successful defense of the Appeal
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\$12,862	In total spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order on the instant Motion.
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The Court finds the rates billed to Cisternino were more than reasonable for the quality of the work, in the geographic region where the Court sits. The court finds that a reasonable rate for the work in this geographic region is \$650 per hour and hereby fixes the raw lodestar as follows:

\$31,3304	For successful defense of the Appeal
\$15,340	For researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order on the instant Motion.

III. A MULTIPLIER

The Court's final task is to determine whether to award a discretionary multiplier to adjust the raw lodestar up or down to arrive at an overall reasonable fee. (*Christian Research Inst., supra*, 165 Cal.App.4th 1315,1321.) The raw lodestar number may be adjusted by the Court based on the novelty and difficulty of the questions involved and the skill displayed in presenting those issues. (*Ketchum v. Moses, supra*, 24 Cal.4th at 1132.)

In light of the quality of the work on a matter before the Court of Appeal and that

observed in the pleadings filed in this Court, the Court finds that a reasonable multiplier of 1.2 is appropriate here. As a result, it fixes the lodestar as follows:

\$37,569	For successful defense of the Appeal
\$18,408	In total spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order for the instant Motion.

Plaintiff XIAO YI ZHENG and Sanctions Debtor DAVID STURGEON-GARCIA (“Attorney Sturgeon”) are ordered to pay the attorney fees and sanctions in full within 30 calendar days of service of notice of entry of this order.

2. 9:00 AM CASE NUMBER: C23-00652
CASE NAME: LAYLA HAYNES VS. JORGE BELTRAN-AGUIRRE
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH
TENTATIVE RULING:

The unopposed demurrer of Defendant American Automobile Association of Northern California, Nevada & Utah (AAA NCNU) to the Plaintiff’s Second Amended Complaint filed December 5, 2025 is **sustained in its entirety** without leave to amend.

3. 9:00 AM CASE NUMBER: C23-01467
CASE NAME: BILLY HOLDMAN VS. STEPHAN LINDSTROM
*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT FOR DAMAGES
FILED BY: HOLDMAN, BILLY
TENTATIVE RULING:

The unopposed motion of Plaintiffs Billy Holdman and Juanita Moffett, by and

through her administrator, Octavia Holdman for an order granting Plaintiffs leave to file a first amended complaint is granted. Plaintiffs to file their pleading within 15 calendar days of this order.

4. 9:00 AM CASE NUMBER: C23-01843
CASE NAME: ALI KHAN VS. X-THERMA INC.
HEARING ON SUMMARY MOTION RE-SET PER EX PARTE ORDER FILED 2/26/2026
FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Ali Khan ("Plaintiff" or "Khan")'s motion for summary adjudication. The motion relates to Plaintiff's Complaint for Breach of Contract as well as Defendant X-Therma, Inc. ("Defendant" or "X-Therma")'s Cross-Complaint for (1) constructive eviction, (2) breach of lease, (3) breach of implied covenant of good faith & fair dealing, (4) declaratory relief, (5) private nuisance, (6) premises liability, (7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq., (8) enforcement of unilateral rescission of the lease, (9) fraud (active concealment), and (10) negligent misrepresentation.

This motion previously came on for hearing on December 12, 2025 where the Court granted Plaintiff's unopposed motion for summary adjudication. Subsequently, however, X-Therma moved *ex parte* to vacate and set aside that order on the grounds that counsel mistakenly believed the motion had been taken off calendar pending completion of discovery and mediation. The instant motion was then reset for June 12, 2026 at 9:00a.m.

As a threshold issue, the motion purports to move "for an order of summary adjudication for all the causes of action stated in the Defendant's cross-complaint and all the affirmative defenses stated by Defendant to the cause of action for breach of contract stated in Plaintiff's complaint" as well as "an order of summary adjudication entered in favor of the Plaintiff's cause of action for Defendant's breach of contract[.]" (Notice at 1:23-28.)

"A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding," or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) &

(f)(1), emphasis added.) These references to “an action” in the summary judgment statute are singular references. The word “action” is defined as “an ordinary proceeding in a court of justice by which one party prosecutes another [...]” (Code Civ. Proc., § 22, emphasis added.)

The Complaint and the Cross-Complaint are legally two separate actions.

“‘Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]’ [Citation omitted.]” “Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant.” [Citation.]’ [Citations omitted.]” (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.)

No authority, of which this Court is aware, permits a party to move for summary adjudication of causes of action in a complaint as well as summary adjudication of claims made in a cross-complaint in a single motion under Code of Civil Procedure section 437c.

X-Therma notes this issue in opposition but does not proffer any authority which would compel the Court to deny the motion on this basis. Furthermore, given that X-Therma was able to file a substantive opposition with respect to both the issues of the complaint and cross-complaint raised by the motion, the Court will address the motion on the merits.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Plaintiff requests judicial notice of X-Therma’s answer to his complaint and X-Therma’s Cross-Complaint against him. “Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, *but do not take judicial notice of the truth of the factual matters asserted in those documents.*” (*Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1090 [italics added].) Subject to that limitation, Plaintiff’s request is **granted**. (Evid. Code § 452(d).)

Defendant requests judicial notice of precipitation records from the National Oceanic and Atmospheric Administration (“NOAA”) for Richmond, CA from

February 2022 through November 2022. Defendant's request is **granted**. (Evid Code § 452(c).)

Legal Standard

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).)

However, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant's affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 ['summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to "prove[] each element of the cause of action" '].)

Analysis

This case arises out of a commercial lease agreement between Plaintiff, owner

of an industrial real estate property in Richmond, and Defendant, a California corporation.

Plaintiff's Complaint for Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

It is not materially disputed that the parties entered into a lease on February 18, 2023. Neither is it materially disputed that Defendant stopped payment under that lease agreement. The critical issue on this motion is whether Plaintiff or Defendant was in breach of a mold warranty provision of the lease such that Defendant was excused from performance (payment of rent).

The lease agreement states in part:

2.2. Condition. Lessor shall deliver that portion of the Premises contained within the Building (“Unit”) to Lessee broom clean and free of debris on the Commencement Date or the Early Possession Date, whichever first occurs (“Start Date”), and, so long as the required service contracts described in Paragraph 7.1(b) below are obtained by Lessee and in effect within thirty days following the Start Date, warrants that the existing electrical, plumbing, fire sprinkler, lighting, heating, ventilating and air conditioning systems (“HVAC”), loading doors, sump pumps, if any, and all other such elements in the Unit, other than those constructed by Lessee, shall be in good operating condition on said date, that the structural elements of the roof, bearing walls and foundation of the Unit shall be free of material defects, and that the Unit does not contain hazardous levels of any mold or fungi defined as toxic under applicable state or federal law. If a non-compliance with such warranty exists as of the Start Date, or if one of such systems or elements should malfunction or fail within the appropriate warranty period, Lessor shall, as Lessor’s sole obligation with respect to such matter, except as otherwise provided in this Lease, promptly after receipt of written notice from Lessee setting forth with specificity the nature and extent of such non-compliance, malfunction or failure, rectify same at Lessor’s expense. The

warranty periods shall be as follows: (i) 12 months as to the HVAC systems, and (ii) 30 days as to the remaining systems and other elements of the Unit. If Lessee does not give Lessor the required notice within the appropriate warranty period, correction of any such non-compliance, malfunction or failure shall be the obligation of Lessee at Lessee's sole cost and expense (except for the repairs to the fire sprinkler systems, roof, foundations, and/or bearing walls – see Paragraph 7.) Lessor also warrants, that unless otherwise specified in writing, Lessor is unaware of (i) any recorded Notices of Default affecting the Premise[s]; (ii) any delinquent amounts due under any loan secured by the Premises; and (iii) any bankruptcy proceeding affecting the Premises.

(See Complaint at Ex. A, ¶ 2.2.)

Plaintiff argues that pursuant to the above 30-day mold warranty, he was not liable under the lease for the subsequent discovery of mold in the Premises. It is not materially disputed that the earliest report of mold to Plaintiff was May 2023, outside this warranty period. (See, e.g., Odell Decl. at Ex. E [May 12, 2023 email reads in part “We identified, tested and confirmed black mold in the existing facility.”].)

Instead, Defendant argues in opposition that the terms of the lease itself “creates a triable issue regarding whether mold existed prior to possession, whether the condition breached Plaintiff's warranty, and whether Plaintiff's breach preceded any alleged breach by Defendant.” (Opp. at § IV(A).)

Defendant misapprehends the shifting burden on summary judgment. Plaintiff adduced evidence that there was no mold in or on the Premises prior to execution of the lease. (Khan Decl. at 2:10-12.) Having met his burden, the burden then shifts to Defendant to adduce evidence that there was mold in the subject Premises prior to the expiration of the mold warranty period under the Lease. Defendant argues, without evidence, that leaks prior to their tenancy “facilitated the growth of toxic molds at the property.” (Opp. at § IV(A).) This is insufficient to meet their burden.

Therefore, the Court will **grant** the motion as Plaintiff's cause of action for breach of contract.

Defendant's Cross-Complaint

As to each claim as framed by the cross-complaint, the cross-defendant moving

for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519–1520.) Once the cross-defendant has met that burden, the burden shifts to the cross-complainant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.)

(1) constructive eviction

The necessary elements for constructive eviction are: (1) a landlord's acts/omissions or disturbance/interference with her tenants' possession of leased premises; and (2) that said landlord's conduct caused either a substantial portion of the premises to be unfit for the purposes for which it was leased or the tenants to be deprived of the beneficial enjoyment or use of the premises for a substantial time. (*Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

The Cross-Complaint alleges that “[t]he Property was and remains in a hazardous condition due to the presence of excessive levels of black mold, which interfered with X-Therma and its employees from safely occupying and conducting its business as a regulated FDA manufacturer at the Premises for operation of a laboratory.” (XC at ¶ 28.)

However, the undisputed evidence demonstrates that Defendant did not report the presence of mold until after the expiration of the 30-day mold warranty period.

Under paragraph 7.1 of the lease, the Defendant became responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (Complaint at Ex. A, ¶ 7.1.) As a consequence, the presence of black mold cannot support Defendant's cause of action for constructive eviction.

Plaintiff is entitled to summary adjudication of Defendant's constructive eviction claim.

(2) breach of lease

Cross-Complainant's breach of lease claim is based on the same contract as is Plaintiff's breach of contract claim. The Cross-Complaint alleges that “Khan

breached the Lease Agreement, by failing to deliver the Premises in a reasonably safe condition, free of hazardous levels of toxic black mold and fungi and other defective conditions.” (XC at ¶ 33.)

For the same reasons as discussed supra, Plaintiff is entitled to summary adjudication of Defendant’s breach of lease claim.

(3) breach of implied covenant of good faith & fair dealing

To prevail on a claim for breach of the implied covenant of good faith and fair dealing, the Cross-Complainant must first establish “the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract.” (*Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49.) Secondly, benefits due under the contract must have been withheld, and “the reason for withholding benefits must have been unreasonable or without proper cause” (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151.) Under traditional contract principles, the implied covenant of good faith is read into contracts “in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract’s purpose.” (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373.)

The Cross-Complaint alleges that “Khan breached this covenant by engaging in acts complained of in this Cross-Complaint and failing and continuing to fail to remediate the issues, including but not limited to the black mold.” (XC at ¶ 39.) However, Plaintiff has adduced evidence that he had no reason to believe that black mold ever existed in or on the Premises before May 12, 2023 (Khan Decl. at 2:10-12) and that pursuant to the lease, Defendant became solely responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (Complaint at Ex. A, ¶ 7.1.)

Plaintiff is entitled to summary adjudication of Defendant’s breach of implied covenant claim.

(4) declaratory relief

California Courts have recognized that “[t]he existence of an ‘actual controversy relating to the legal rights and duties of the respective parties,’ suffices to maintain an action for declaratory relief.” (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605.) “Any person interested under a written instrument,... or under a contract, or who desires a declaration of his or her

rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (*Id.* [quoting Code Civ. Proc, § 1060].)

As discussed *infra*, the Court grants Plaintiff's motion with respect to all of the causes of action of the Cross-Complaint. Thus, an actual controversy sufficient to sustain a declaratory judgment cause of action does not exist.

Plaintiff is entitled to summary adjudication of Defendant's declaratory relief claim.

(5) private nuisance

Section 731 of the Code of Civil Procedure governs who may bring an action for nuisance. It provides: "An action may be brought by any person whose property is injuriously affected, or whose personal enjoyment is lessened by a nuisance, as defined in Section 3479 of the Civil Code, and by the judgment in that action the nuisance may be enjoined or abated as well as damages recovered therefor." (Code Civ. Proc., § 731.)

Here, Defendant's private nuisance claim is premised on the presence of black mold at the property. However, as the undisputed material facts establish, Defendant did not report the presence of mold until after the expiration of the 30-day mold warranty period, and that under the lease Defendant was solely responsible for remediating the presence of black mold. (Odell Decl. at Ex. E [May 12, 2023 email]; Complaint at Ex. A, ¶¶ 2.2, 7.1.)

As a consequence, Plaintiff is entitled to summary adjudication of Defendant's private nuisance claim.

(6) premises liability

For the same reasons as discussed with respect to Defendant's private nuisance claim, Plaintiff is entitled to summary adjudication of Defendant's premises liability claim, which is also premised on the presence of black mold.

(7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq.

Plaintiff moves for summary adjudication of Defendant's 17200 claim on the

grounds that Defendant does not spell out the elements of the business tort for the “borrowed” action in his UCL claim.

“[S]ection 17200 ‘borrows’ violations of other laws and treats them as unlawful practices” that the unfair competition law makes independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

As pled, Defendant’s Cross-Complaint is unclear as to the predicate violation upon which it relies for its 17200 claim. It alleges only “[t]he various breaches of duty committed by Khan as described herein constitute unlawful, unfair, and/or fraudulent business practices in violation of the UCL.” (XC at ¶ 63.) Even assuming arguendo that Defendant’s causes of action for breach of contract or fraud are intended to serve as a predicate for the 17200 claim, Plaintiff has established that he is entitled to summary adjudication on those claims, as discussed herein.

Plaintiff is entitled to summary adjudication of Defendant’s 17200 claim.

(8) enforcement of unilateral rescission of the lease

Plaintiff moves for summary adjudication of Defendant’s cause of action for rescission on the same grounds as breach of lease. Because the Court has already determined that Plaintiff performed under the contract, Defendant cannot establish a cause of action for rescission. Plaintiff is entitled to summary adjudication on Defendant’s cause of action for rescission.

(9) fraud (active concealment)

Plaintiff moves for summary adjudication on Defendant’s cause of action for fraud on the grounds that it lacks the requisite specificity.

The elements of a fraudulent concealment cause of action are: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4 858, 868.)

Defendant’s Cross-Complaint alleges that (1) “Khan concealed the fact that the

Property had black mold in it” (XC at ¶ 71); (2) that “[t]he existence of the black mold at the Property was known by Kahn because he was obligated by a commercial landowner to inspect the Property before the Lease was executed to make the premises reasonably safe from dangerous conditions” (XC at ¶ 72); (3, 4) that “at the time X-Therma executed the Lease, Khan concealed this information with the intent that X-Therma rely ignorant of the true facts” (XC at ¶ 74); and (5) that “X-Therma has been damaged in an amount exceeding \$700,000, which amount will be proven at trial.” (XC at ¶ 75.)

Plaintiff argues these allegations are insufficient to state a cause of action for concealment; both Plaintiff’s intent and Defendant’s reliance are inadequately alleged. Defendant does not address this argument in opposition, conceding the merit of Plaintiff’s argument. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal. App. 4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue.”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal. App. 4th 507, 529 [“[F]ailure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot.”].)

Plaintiff is entitled to summary adjudication on Defendant’s claim for fraud (active concealment).

(10) negligent misrepresentation

Plaintiff also moves for summary adjudication on Defendant’s claim for negligent misrepresentation on the grounds that it lacks the requisite specificity.

The elements of negligent misrepresentation are “(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded. (*E.g., Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.)

Defendant's Cross-Complaint alleges that (1) Khan represented to X-Therma that the Property contained no black mold issues (XC at ¶ 78); (2) those representations were false, Khan should have known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

Plaintiff argues that Defendant did not plead with any particularity how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The Court agrees. The allegations of the Cross-Complaint are cursory at best. And as with Defendant's cross-claim for fraud, they do not address this argument or cause of action in opposition, effectively conceding the merit of Plaintiff's argument.

Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

Objections to Evidence

California Rules of Court Rule 3.1354(b) dictates the format in which evidentiary objections must be submitted: "All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." In opposition, Defendant argues that "the Declaration of Plaintiff Ali Khan fails [to] comply with the evidentiary standards necessary to support the present Motion and is largely, if not entirely based on hearsay, improper lay and expert opinion, legal conclusions, and statements lacking foundation." (Opp. at § III.) This objection fails to comply with Rule of Court 3.1354(b).

The Court **denies** this objection based on its procedural deficiency. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 9 [trial court did not abuse discretion in denying objections that were not filed separately].)

For the same reasons, Plaintiff's objection in its reply regarding X-Therma's

opposing evidence is also **denied**.

5. 9:00 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
HEARING ON SUMMARY MOTION
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

San Ramon Valley High School ("SRVHS") and San Ramon Valley Unified School District ("District," or collectively, "District Defendants"), move for summary judgment on plaintiff's Second Amended Complaint ("SAC"); or, in the alternative, summary adjudication as to each cause of action raised against them. The motion for summary judgment is **granted**, as discussed below. District Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

I. Background

Plaintiff, Spencer Kropp, alleges that he was a fifteen-year-old member of the JV football team who incurred injuries on August 18, 2022, around 5pm, when he fell off the bumper of another football player's truck in the school parking lot after practice. (SAC, ¶¶11-13, 23-25.)

Plaintiff had been loading his gear into the truck driven by defendant Andrew Nicholson, when Nicholson accelerated prior to plaintiff moving away from the vehicle, causing plaintiff to fall face first and sustain head injuries. (SAC, ¶¶23-25.) The coaches had already departed the school on their way to a nearby pizzeria for a team dinner following practice. (See SAC, ¶97.) The dinner was a weekly activity after practice that was "team-sponsored" and "school-sanctioned." (SAC, ¶¶11.) Typically, some players would walk to the restaurant after loading their gear into other players' vehicles, while other players were transported by their peers, such as Andrew Nicholson, who owned vehicles. (SAC, ¶24.)

The SAC alleges plaintiff told his coaches about his injury upon arriving at the pizzeria, but they ignored plaintiff and his objective indications of head injury (cuts, scrapes, bruising, and swelling). (SAC, ¶77.) The coaches failed to prevent him from participating in a scrimmage the following day, and in a practice the day after the scrimmage. (SAC, ¶¶77-79.) The coaches failed to

have plaintiff evaluated by a licensed health care provider, to place him into a concussion protocol, and to impose certain return-to-play requirements. Instead they told him to “push through it.” (See SAC, ¶¶71-77.) Plaintiff alleges he proceeded to incur further injuries when he participated in the team’s scrimmage the following day, and again during practice the day following the scrimmage, on August 20, 2022, where he vomited during practice. (SAC, ¶¶74-78) On August 22, 2022, plaintiff was diagnosed with a concussion “as a result of the repeated and cumulative head injuries he sustained” on August 18th, 19th, and 20th. (SAC, ¶75.)

After the District rejected his Government Code Claim, plaintiff brought suit against District Defendants as well as several individual defendants, in September of 2023.

Following the sustaining of a demurrer to the third cause of action in the SAC, the causes of action against District Defendants include the fourth (premised on negligence and an alleged violation of Education Code, § 49475), fifth (for failure to hold pupils to a strict account for their conduct: automobile use), sixth and seventh (for violations of the Child Abuse and Neglect Reporting Act).

District Defendants filed this motion, asserting entitlement to summary judgment or, in the alternative, adjudication on each cause of action. They support the motion with a compendium of evidence that includes deposition testimony and declarations, as well as a separate statement of undisputed material facts (“SSUMF”) and a memorandum of points and authorities.

Plaintiff has filed a non-opposition to the motion.

II. Undisputed Facts

In support of the motion, District Defendants have offered the following facts, which plaintiff does not dispute:

District is a public school district. (SSUMF, Fact. No. 1.) SRVHS is one of the school sites operated by the District. (SSUMF, Fact. No. 2.) The District employed Coach Bowen as an assistant coach of the JV Team for the 2022 season. (SSUMF, Fact. No. 3.) The District employed Coach Yi, a paramedic with 25 years of experience, as an assistant coach of the SRVHS JV football team for the 2022 season. (SSUMF, Fact. No. 4.) Plaintiff and his mother were provided with a copy of the California Interscholastic Federation “State Concussion

Information Sheet,” review of which they acknowledged on August 5, 2022. (SSUMF, Fact. Nos. 5-6.) The sheet provided, among other information, that if concussions are not “recognized and managed the right way, they may result in problems including brain damage and even death.” (SSUMF, Fact. No. 7.)

The District employed the Coaches exclusively as classified employees during the 2022 football season. (SSUMF, Fact. Nos. 8-11.)

While plaintiff was standing on the rear bumper of the truck in question and in the process of throwing his backpack into the bed of the vehicle, his teammate A.J. Nicholson “violent[ly] accelerat[ed]” the truck forward. (SSUMF, Fact. No. 13.) Plaintiff later recounted the accident to teammates, noting that, “just for no reason A.J. took off...” (SSUMF, Fact. No. 14.) The injury in question occurred in an SRVHS parking lot after the JV Team practice on August 18, 2022. (SSUMF, Fact. No. 15.) The SRVHS campus parking lot in question spans several thousand square feet. (SSUMF, Fact. No. 12.)

As a result of the accident plaintiff immediately suffered a lacerated lower lip, scrapped knees, a scrapped torso, and felt a little dizzy and in shock. (SSUMF, Fact. No. 16.) Plaintiff does not allege that A.J. caused him any additional injuries after the alleged parking lot incident. (SSUMF, Fact. No. 17.) The total amount of time the truck in question was stopped immediately prior to the accident was approximately 20 seconds. (SSUMF, Fact. No. 18.)

No coaches were present in the parking lot at the time of the accident in question and none of their contractual job duties included supervising SRVHS parking lots after practices. (SSUMF, Fact. Nos. 19-23.) After the coaches learned of the accident in question, they sought out plaintiff and asked him for his version of the accident in question. (SSUMF, Fact. Nos. 24-25.) Plaintiff told the coaches that he had hit his head on the ground during the accident in question. (SSUMF, Fact. No. 26.) The coaches then conducted an examination of plaintiff and determined he would be “just fine.” (SSUMF, Fact. Nos. 27-28.) The coaches did not see anything that made them suspect that Plaintiff had suffered anything more than superficial abrasions to his skin and lip. (SSUMF, Fact. No. 29.)

During school on Friday, August 19, 2022, plaintiff felt “super tired,” unfocused, and sensitive to light; in addition to still feeling head pressure, nausea, and dizziness. (SSUMF, Fact. No. 30.) On the day of the scrimmage in question, prior to the game, the coaches asked plaintiff if he was fit enough to

play. (SSUMF, Fact. No. 31.) Plaintiff responded in the affirmative and did not tell the coaches about any of the symptoms he was feeling. (SSUMF, Fact. Nos. 32-33.)

On the day of the scrimmage in question, prior to the game, none of the coaches saw anything that made them suspect plaintiff had suffered a concussion the previous day. (SSUMF, Fact. Nos. 34-36.) They also did not see anything during or after the game to make them suspect plaintiff had suffered a concussion. (SSUMF, Fact. Nos. 37-40.)

Plaintiff alleges that he started suffering headaches at some point at Primo's, and started suffering nausea later that night at home. (SSUMF, Fact. No. 42.) On the day of the accident in question, while at Primo's, plaintiff did not tell the coaches of any neurological or mental symptoms. He only informed them of his physical symptoms. (SSUMF, Fact. No. 43.)

On Saturday, August 20, 2022, plaintiff woke up with the same symptoms as the previous day, plus a "beating headache." (SSUMF, Fact. No. 44.) Coach Bowen was the only coach who attended the practice on Saturday, August 20, 2022. (SSUMF, Fact. No. 45.) Plaintiff did not speak to Coach Bowen prior to the practice on Saturday, August 20, 2022, but he alleges that after he vomited during a running drill, he told Coach Bowen, "I can't practice anymore," and "I don't feel good." (SSUMF, Fact. Nos. 46-47.)

Coach Bowen testifies that players often vomit during conditioning drills, and often plead that they do not have the ability to finish the exercise for various reasons. (SSUMF, Fact. No. 48.) After the conditioning practice on Saturday, August 20, 2022, plaintiff did not again physically participate in any football activities. (SSUMF, Fact. No. 49.)

On August 5, 2022, Plaintiff's mother executed a copy of the "Parent/Legal Guardian Consent, Release & Waiver." (SSUMF, Fact. No. 50.) The "Parent/Legal Guardian Consent, Release & Waiver" executed by Plaintiff's mother read, in part: "...I understand and appreciate that there is a risk of serious and possibly permanent injury, including brain damage or death, to [Plaintiff] as a result of his/her engagement in [SRVHS sports] and, on behalf of [Plaintiff] and me, I KNOWINGLY AND FREELY ASSUME THOSE AND ALL OTHER RISKS, known and unknown, related to [Plaintiff's] engagement in [SRVH sports], including but not limited to RISKS ARISING FROM THE NEGLIGENCE OF OTHERS." (SSUMF, Fact. No. 51.) Plaintiff was a member of the JV Team during

the 2022 season. (SSUMF, Fact. No. 52.)

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

A. Failure to Exercise Reasonable Diligence (4th C/A)

This cause of action, which is essentially one for negligence, would require plaintiff to show a legal duty to use due care, a breach of such legal duty, and that the breach was the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Any potential duty would be limited by what plaintiff set forth in his Government Code claim and his SAC.

District Defendants argue that under the above facts, (1) they had no duty to plaintiff pursuant to Education Code section 49475, as Judge Douglas previously determined in ruling on two demurrers, (2) there was also no duty to obtain written clearance from a health care provider before allowing plaintiff to return to play (the other potential avenue for claiming negligence, as described by Judge Douglas in the minute order dated May 9, 2025), and (3) public employees and their employers are immune from any liability arising from "misdiagnosing" an athlete as fit for physical activity.

For the reasons set forth in their memorandum of points and authorities, both District Defendants are entitled to judgment on the fourth cause of action under the undisputed facts.

B. Failure to Hold Pupils to a Strict Account for Their Conduct (Automobile

Use) (5th C/A)

This cause of action requires plaintiff to show the District Defendants are vicariously liable for the Coaches' breach of a mandatory duty pursuant to Education Code, § 44807, which requires "[e]very teacher in the public schools" to "hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess." As shown by the undisputed facts above, Coaches were classified employees, not teachers or other *certificated* employees that might be subject to the statute. Accordingly, there was no duty and District Defendants have shown entitlement to judgment on the fifth cause of action. While other grounds are raised (the statute only requires after-the-fact punishment and plaintiff's own admissions show there was no causation), the Court need not reach those arguments.

C. Remaining Causes of Action (6th and 7th Causes of Action Related to Child Abuse & Neglect Under the Penal Code)

District Defendants assert multiple arguments in favor of summary adjudication on the sixth and seventh causes of action. While most of the arguments have merit, the Court opts to dispose of these causes of action pursuant to the doctrine of assumption of risk.

As set forth in the case cited by District Defendants, "the evidence must disclose the injured person appreciated the particular risk involved. He does not assume any risk he does not know or appreciate. Stated another way, before the doctrine is applicable, the victim must have not only general knowledge of a danger, but must have knowledge of the particular danger, that is, knowledge of the magnitude of the risk involved." (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1026.) The undisputed facts indicate plaintiff and his mother both reviewed and acknowledged a form containing information about concussions and warning that "if concussions are not recognized and managed the right way, they may result in problems including brain damage and even death." (SSUMF, Fact. Nos. 6-7.) The symptoms plaintiff experienced were precisely those warned about in the form, yet he failed to make his coaches aware of the full scope of his injuries at a time when it would have prompted them to take a different approach to his injuries. (See SSUMF, Fact Nos. 16, 30-33, 42-46.)

This acknowledgment, combined with the evidence presented on this motion, was sufficient to show, at least with respect to the District Defendants

and Coaches, that plaintiff assumed the risks associated with suffering a concussion and that District Defendants are entitled to judgment on these causes of action as a matter of law.

V. Conclusion

Because the evidence and argument presented by the District Defendants successfully shifts the burden to plaintiff to present triable disputes of material fact with respect to each of the thirteen issues, and plaintiff does not present any evidence or argument to the contrary, summary judgment is appropriate is granted with respect to the District Defendants.

6. 9:00 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
HEARING ON SUMMARY MOTION
FILED BY: BOWEN, BRAD
TENTATIVE RULING:

Defendants Brad Bowen and David Yi (collectively, “Coaches”), move for summary judgment on plaintiff’s Second Amended Complaint (“SAC”); or, in the alternative, summary adjudication as to each cause of action raised against them. The motion for summary judgment is **granted**, as discussed below. Coaches shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

I. Background

Plaintiff, Spencer Kropp, alleges that he was a fifteen-year-old member of the JV football team who incurred injuries on August 18, 2022, around 5pm, when he fell off the bumper of another football player’s truck in the school parking lot after practice. (SAC, ¶¶11-13, 23-25.)

Plaintiff had been loading his gear into the truck driven by defendant Andrew Nicholson, when Nicholson accelerated prior to plaintiff moving away from the vehicle, causing plaintiff to fall face first and sustain head injuries. (SAC, ¶¶23-25.) The coaches had already departed the school on their way to a nearby pizzeria for a team dinner following practice. (See SAC, ¶97.) The dinner was a weekly activity after practice that was “team-sponsored” and “school-sanctioned.” (SAC, ¶¶11.) Typically, some players would walk to the restaurant

after loading their gear into other players' vehicles, while other players were transported by their peers, such as Andrew Nicholson, who owned vehicles. (SAC, ¶24.)

The SAC alleges plaintiff told his coaches about his injury upon arriving at the pizzeria, but they ignored plaintiff and his objective indications of head injury (cuts, scrapes, bruising, and swelling). (SAC, ¶77.) The coaches failed to prevent him from participating in a scrimmage the following day, and in a practice the day after the scrimmage. (SAC, ¶¶77-79.) The coaches failed to have plaintiff evaluated by a licensed health care provider, to place him into a concussion protocol, and to impose certain return-to-play requirements. Instead they told him to "push through it." (See SAC, ¶¶71-77.) Plaintiff alleges he proceeded to incur further injuries when he participated in the team's scrimmage the following day, and again during practice the day following the scrimmage, on August 20, 2022, where he vomited during practice. (SAC, ¶¶74-78) On August 22, 2022, plaintiff was diagnosed with a concussion "as a result of the repeated and cumulative head injuries he sustained" on August 18th, 19th, and 20th. (SAC, ¶75.)

After the District rejected his Government Code Claim, plaintiff brought suit against the District, Coaches, and several other individual defendants, in September of 2023.

Following the sustaining of a demurrer to the third cause of action in the SAC, the causes of action against the Coaches include the fourth (premised on negligence and an alleged violation of Education Code, § 49475), fifth (for failure to hold pupils to a strict account for their conduct: automobile use), sixth and seventh (for violations of the Child Abuse and Neglect Reporting Act).

Coaches filed this motion, asserting entitlement to summary judgment or, in the alternative, adjudication on each cause of action. They support the motion with a compendium of evidence that includes deposition testimony and declarations, as well as a separate statement of undisputed material facts ("SSUMF") and a memorandum of points and authorities.

Plaintiff has filed a non-opposition to the motion.

II. Undisputed Facts

In support of the motion, Coaches have offered the following facts, which plaintiff does not dispute:

The District employed Coach Bowen as an assistant coach of the JV Team for the 2022 season. (SSUMF, Fact. No. 3.) The District employed Coach Yi, a paramedic with 25 years of experience, as an assistant coach of the SRVHS JV football team for the 2022 season. (SSUMF, Fact. No. 4.) Plaintiff and his mother were provided with a copy of the California Interscholastic Federation “State Concussion Information Sheet,” review of which they acknowledged on August 5, 2022. (SSUMF, Fact. Nos. 5-6.) The sheet provided, among other information, that if concussions are not “recognized and managed the right way, they may result in problems including brain damage and even death.” (SSUMF, Fact. No. 7.)

The District employed the Coaches exclusively as classified employees during the 2022 football season. (SSUMF, Fact. Nos. 8-9.)

While plaintiff was standing on the rear bumper of the truck in question and in the process of throwing his backpack into the bed of the vehicle, his teammate A.J. Nicholson “violent[ly] accelerat[ed]” the truck forward. (SSUMF, Fact. No. 13.) Plaintiff later recounted the accident to teammates, noting that, “just for no reason A.J. took off...” (SSUMF, Fact. No. 14.) The injury in question occurred in an SRVHS parking lot after the JV Team practice on August 18, 2022. (SSUMF, Fact. No. 15.) The SRVHS campus parking lot in question spans several thousand square feet. (SSUMF, Fact. No. 12.)

As a result of the accident plaintiff immediately suffered a lacerated lower lip, scrapped knees, a scrapped torso, and felt a little dizzy and in shock. (SSUMF, Fact. No. 16.) Plaintiff does not allege that A.J. caused him any additional injuries after the alleged parking lot incident. (SSUMF, Fact. No. 17.) The total amount of time the truck in question was stopped immediately prior to the accident was approximately 20 seconds. (SSUMF, Fact. No. 18.)

No coaches were present in the parking lot at the time of the accident in question and none of their contractual job duties included supervising SRVHS parking lots after practices. (SSUMF, Fact. Nos. 19-21.) After the coaches learned of the accident in question, they sought out plaintiff and asked him for his version of the accident in question. (SSUMF, Fact. Nos. 24-25.) Plaintiff told the coaches that he had hit his head on the ground during the accident in question. (SSUMF, Fact. No. 26.) The coaches then conducted an examination of plaintiff and determined he would be “just fine.” (SSUMF, Fact. Nos. 27-28.) The coaches did not see anything that made them suspect that Plaintiff had suffered

anything more than superficial abrasions to his skin and lip. (SSUMF, Fact. No. 29.)

During school on Friday, August 19, 2022, plaintiff felt “super tired,” unfocused, and sensitive to light; in addition to still feeling head pressure, nausea, and dizziness. (SSUMF, Fact. No. 30.) On the day of the scrimmage in question, prior to the game, the coaches asked plaintiff if he was fit enough to play. (SSUMF, Fact. No. 31.) Plaintiff responded in the affirmative and did not tell the coaches about any of the symptoms he was feeling. (SSUMF, Fact. Nos. 32-33.)

On the day of the scrimmage in question, prior to the game, Coaches did not see anything that made them suspect plaintiff had suffered a concussion the previous day. (SSUMF, Fact. Nos. 34-35.) They also did not see anything during or after the game to make them suspect plaintiff had suffered a concussion. (SSUMF, Fact. Nos. 38-39.)

Plaintiff alleges that he started suffering headaches at some point at Primo’s, and started suffering nausea later that night at home. (SSUMF, Fact. No. 42.) On the day of the accident in question, while at Primo’s, plaintiff did not tell the coaches of any neurological or mental symptoms. He only informed them of his physical symptoms. (SSUMF, Fact. No. 43.)

On Saturday, August 20, 2022, plaintiff woke up with the same symptoms as the previous day, plus a “beating headache.” (SSUMF, Fact. No. 44.) Coach Bowen was the only coach who attended the practice on Saturday, August 20, 2022. (SSUMF, Fact. No. 45.) Plaintiff did not speak to Coach Bowen prior to the practice on Saturday, August 20, 2022, but he alleges that after he vomited during a running drill, he told Coach Bowen, “I can’t practice anymore,” and “I don’t feel good.” (SSUMF, Fact. Nos. 46-47.)

Coach Bowen testifies that players often vomit during conditioning drills, and often plead that they do not have the ability to finish the exercise for various reasons. (SSUMF, Fact. No. 48.) After the conditioning practice on Saturday, August 20, 2022, plaintiff did not again physically participate in any football activities. (SSUMF, Fact. No. 49.)

On August 5, 2022, Plaintiff’s mother executed a copy of the “Parent/Legal Guardian Consent, Release & Waiver.” (SSUMF, Fact. No. 50.) The “Parent/Legal Guardian Consent, Release & Waiver” executed by Plaintiff’s mother read, in part: “...I understand and appreciate that there is a risk of

serious and possibly permanent injury, including brain damage or death, to [Plaintiff] as a result of his/her engagement in [SRVHS sports] and, on behalf of [Plaintiff] and me, I KNOWINGLY AND FREELY ASSUME THOSE AND ALL OTHER RISKS, known and unknown, related to [Plaintiff's] engagement in [SRVH sports], including but not limited to RISKS ARISING FROM THE NEGLIGENCE OF OTHERS." (SSUMF, Fact. No. 51.) Plaintiff was a member of the JV Team during the 2022 season. (SSUMF, Fact. No. 52.)

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

A. Failure to Exercise Reasonable Diligence (4th C/A)

This cause of action, which is essentially one for negligence, would require plaintiff to show a legal duty to use due care, a breach of such legal duty, and that the breach was the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Any potential duty would be limited by what plaintiff set forth in his Government Code claim and his SAC.

District Defendants argue that under the above facts, (1) they had no duty to plaintiff pursuant to Education Code section 49475, as Judge Douglas previously determined in ruling on two demurrers, (2) there was also no duty to obtain written clearance from a health care provider before allowing plaintiff to return to play (the other potential avenue for claiming negligence, as described by Judge Douglas in the minute order dated May 9, 2025), and (3) public employees and their employers are immune from any liability arising from

“misdiagnosing” an athlete as fit for physical activity.

For the reasons set forth in their memorandum of points and authorities, Coaches are entitled to judgment on the fourth cause of action under the undisputed facts.

B. Failure to Hold Pupils to a Strict Account for Their Conduct (Automobile Use) (5th C/A)

This cause of action requires plaintiff to show the Coaches’ breach of a mandatory duty pursuant to Education Code, § 44807, which requires “[e]very teacher in the public schools” to “hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess.” As shown by the undisputed facts above, Coaches were classified employees, not teachers or other *certificated* employees that might be subject to the statute. Accordingly, there was no duty and Coaches have shown entitlement to judgment on the fifth cause of action. While other grounds are raised (the statute only requires after-the-fact punishment and plaintiff’s own admissions show there was no causation), the Court need not reach those arguments.

C. Remaining Causes of Action (6th and 7th Causes of Action Related to Child Abuse & Neglect Under the Penal Code)

Coaches assert multiple arguments in favor of summary adjudication on the sixth and seventh causes of action. While the arguments have merit, the Court opts to dispose of these causes of action pursuant to the doctrine of assumption of risk.

As set forth in one case, “the evidence must disclose the injured person appreciated the particular risk involved. He does not assume any risk he does not know or appreciate. Stated another way, before the doctrine is applicable, the victim must have not only general knowledge of a danger, but must have knowledge of the particular danger, that is, knowledge of the magnitude of the risk involved.” (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1026.)

The undisputed facts indicate plaintiff and his mother both reviewed and acknowledged a form containing information about concussions and warning that “if concussions are not recognized and managed the right way, they may result in problems including brain damage and even death.” (SSUMF, Fact. Nos. 6-7.) The symptoms plaintiff experienced were precisely those warned about in

the form, yet he failed to make his coaches aware of the full scope of his injuries at a time when it would have prompted them to take a different approach to his injuries. (See SSUMF, Fact Nos. 16, 30-33, 42-46.)

This acknowledgment, combined with the evidence presented on this motion, was sufficient to show, at least with respect to the District Defendants and Coaches, that plaintiff assumed the risks associated with suffering a concussion and that Coaches are entitled to judgment on these causes of action as a matter of law.

V. Conclusion

Because the evidence and argument presented by the Coaches successfully shifts the burden to plaintiff to present triable disputes of material fact with respect to each of the twelve issues, and plaintiff does not present any evidence or argument to the contrary, summary judgment is appropriate is granted with respect to the Coaches.

7. 9:00 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT - CONT'D FROM 5/29/2026

FILED BY: OLI, THALBIR

TENTATIVE RULING:

The court's tentative ruling from 5/29/26 is still the tentative ruling of the court and is published below for the convenience of the parties.

The court continued argument which began on 5/29/26 to 6/12/26.

Counsel are ordered to appear.

[Demurrer]

Introduction

Before the Court is Cross-Defendants THALBIR OLI, and SABRINA HAN's Demurrer to all causes of action in Cross-Complainants First Amended Cross Complaint filed on January 5, 2026. Cross-Complainant SUSHOVAN SHAHI's Cross Complaint contains four causes of action: 1) Breach of Oral Agreement; 2) Breach of Written Agreement; Fraudulent Inducement; and 4) Intentional Interference with Contractual Relations.

For the following reasons, **Cross-Defendants' Demurrer to the FACC is**

overruled in its entirety.

Meet and Confer Requirement

Cross-Defendants satisfied their meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Narayan P. Bhandari. On January 28, through February 4, 2026, the parties exchanged meet and confer emails and were unable to connect by telephone. (Bhandari Decl. at ¶¶18-28.)

Statement of Facts

The facts as alleged in the First Amended Cross Complaint "FACC" are as follows.

OM NAMAHA LLC is a California limited liability company which was created on April 3, 2023, with its principal address located at 3596 Ponderosa Trail, Pinole, CA 94564. The business at the center of this dispute, Jug Shop Liquors (hereinafter referred to as the "Jug Shop"), is wholly owned by OM NAMAHA LLC (hereinafter referred to as "OM"). (FACC ¶ 5.) At all relevant times pertinent to this litigation, the owners of OM were SUSHOVAN SHAHI (hereinafter referred to as "Sushovan") and SABRINA HAN (hereinafter referred to as "Sabrina"). The principal asset owned by Om Namaha LLC is the Jug Shop, a liquor store formally located at 1630 Contra Costa Blvd Ste E in Pleasant Hill, CA 94523. For all intents and purposes, OM is a holding company with the sole purpose to retain and manage the Jug Shop. (FACC ¶ 6.)

OM's Operating Agreement (hereinafter referred to as "Operating Agreement") was drafted and finally executed on or around July 21, 2023. The Operating Agreement memorialized Sabrina's and Sushovan's percentage of ownership in OM: Sabrina owned 49% and Sushovan owned 51%. (FACC ¶ 7.) As set forth in the Operating Agreement, Sabrina and Sushovan agreed to and represented to each other that each of them would provide their initial contribution of working capital necessary to open Jug Shop Liquors for business. The capital contribution mirrored each other's ownership percentage of OM; therefore, 51% of the initial contribution was to be from Sushovan, while 49% of the total initial capitalization was to come from Sabrina. (FACC ¶ 8.)

On or around August 14, 2023, the escrow process for OM to purchase the Jug Shop was completed. The overall purchase price for the Jug Shop was \$346,051.18. Pursuant to the Operating Agreement, Sabrina was obligated to

contribute \$169,565.08, (representing her 49% of the total purchase price of \$346,051.18). However, Sabrina only contributed \$153,000.00 toward the purchase of the Jug Shop—falling \$16,565.08 short of her obligated financial contribution. (FACC ¶ 9.) Sushovan contributed his agreed upon amount of 51% of the purchase price. (FACC ¶ 10.) Sushovan covered Sabrina’s shortfall. Sabrina expressly and impliedly represented to Sushovan that she would fully repay him the \$16,565.08 within a few weeks as she was expecting another tranche of money for the Jug Shop purchase and ramp up. Sushovan agreed and paid, out of his funds, the additional \$16,565.08 to OM to close the transaction. (FACC ¶ 11.) As of the date of the filing of this First Amended Complaint, this balance remains unpaid. Sabrina’s ongoing and willful failure to provide the agreed upon capital in exchange for her membership interest is an express breach of the agreement wrought between her and Sushovan. (FACC ¶ 12.)

Sabrina has refused to reimburse Sushovan for her share of the additional initial costs associated with including \$25,531.31 for the business license, alcohol license, health permits, dba certifications/ inventory purchases, escrow, tobacco license, application fees, other necessary supplies, and the initial deposit in the amount of \$11,851.62 to lease the Jug Shop’s physical location all of which was covered by Sushovan. (FACC ¶¶ 13-14.) The Jug Shop opened for business on August 14, 2023. (FACC ¶ 15.)

It soon became a regular pattern that Sabrina took little to no interest in providing any support toward the success or daily operation of the Jug Shop. Sabrina unilaterally delegated her boyfriend Thalbir Oli (hereinafter referred to as “Oli”) to handle her obligations as manager of OM. (FACC ¶ 16.) Sabrina represented that Oli had substantial experience in owning liquor stores and that he had the qualifications, expertise, and willingness to contribute to the operation of the Jug Shop. Sabrina further represented to Sushovan that Oli was going to be present at the Jug Shop at least five days a week then leaving to tend to Oli’s other liquor store in Daly City, California. (FACC ¶ 17.) Despite Sabrina’s representations that her representative Oli would manage the Jug Shop at least five days a week, Oli failed to be present to perform managerial obligations much of the time – which later led to Oli neglecting to be present at the liquor store at all. (FACC ¶ 18.)

Despite awareness of Oli’s neglect of the Jug Shop, Sabrina made no effort to relieve Oli of his position, nor did she step in to make any meaningful contribution to the business. Further necessary capital contributions were made

by Sushovan to ensure the business could succeed. For 2023, the additional capital contributions made by Sushovan amounted to \$50,504.62 (not including Sabrina's initial shortage of \$16,565.08). (FACC ¶ 19.) Sabrina had full knowledge that Sushovan was forced to make these additional capital contributions and Sabrina was fully aware she was benefitting financially from these investments as a member of OM. Instead of providing her obligated contributions, Sabrina instead continued to neglect the company. (FACC ¶ 20.) Upon information and belief, Sabrina never had an intention of devoting time and resources toward the success of OM. Further, upon information and belief Sabrina conspired with Oli and enabled Oli to circumvent the legal requirements surrounding ownership of a liquor store. At this point early in the operation of the Jug Shop, Oli was essentially acting as a de facto liquor store owner and reaping the benefits of such status while side-stepping all legal and procedural protocols that are set in place to protect the public consumer and the company itself. (FACC ¶ 21.)

Defendant Oli was eventually offered a membership interest in OM upon ability to pay a pre-determined capital infusion and upon qualifying for the ABC licensing requirements for an additional member. Upon information and belief, Oli was unable to acquire the necessary loan to provide an initial capital contribution to become a bona fide owner of OM. Upon information and belief, there was speculation of moral turpitude issues that would prevent Oli's eligibility to qualify for an ABC liquor license which was a necessary component for ownership of the liquor license at the core of the Jug Shop's operations. (FACC ¶ 22.) As a result, Sushovan was intentionally misled by Sabrina into entering a business partnership with her when Sabrina never intended to participate in any fashion in the Jug Shop. The Jug Shop was merely a façade for Defendant Oli to illegally control and to retain profits from owning a liquor store through his relationship with Sabrina who acted as a front for his bad faith operation of the Jug Shop. Once Oli was confronted with these concerns, Oli began to cease participation in operating the Jug Shop. Sabrina made no attempt to remedy the situation or the absence in her promised and delegated management of the store. (FACC ¶ 24.)

Due to Oli and Sabrina's indifference toward the wellbeing of the business, Sushovan was forced to solely handle the operations of OM /Jug Shop as well as incur significant personal financial losses to keep the business afloat. (FACC ¶ 25.) Sushovan continued to pay all necessary Jug Shop expenses and costs in full

without any contribution from Sabrina. The failure to support her end of the bargain led Sushovan to make an offer to buy Sabrina out of OM entirely. (FACC ¶ 26.)

After negotiations, upon information and belief, Sabrina prepared the LLC Membership Interest Transfer Agreement (hereinafter referred to as the “MITA”) which was entered by and between the parties on April 29, 2024, thus relinquishing the membership interest to Sushovan. (FACC ¶ 27.) The MITA did not include an explicit purchase price. Rather, the aggregate purchase price was to be determined once the balance sheet and profit and loss statements were completed by an accountant. Although the parties mutually agreed to the provisions outlined in the MITA, Sabrina breached that written agreement by refusing to provide a reasonable purchase price in line with the market value of her ownership interest. To date, Sabrina still has failed to provide a dollar value for her membership interest that is backed by a proper accounting. (FACC ¶ 28.)

Without any support, Sabrina demanded her membership be purchased at \$180,000 which far exceeded the reasonable cost of such interest in OM given its recent hardships. (FACC ¶ 29.) Upon information and belief, Sabrina had no reasonable basis to demand this amount in exchange for her interest; this offer was arbitrarily inflated to leverage Sushovan’s desperation to save the Jug Shop Liquors from going out of business. Sabrina unreasonably refused to participate or to attend any meeting with Sushovan or Sushovan and the Jug Shop’s landlord to try and salvage the business by at least keeping the valuable liquor license inextricably tied to the address of the shop where it had been operated. (FACC ¶ 31.)

Despite additional material steps taken by Sushovan toward buying out Sabrina pursuant to the MITA agreement, Sabrina deliberately breached the MITA by failing to take any steps toward obtaining a timely and legitimate appraisal/purchase price for her membership interest prior to the MITA’s closing date of July 15, 2024, as she had previously promised. (FACC ¶ 34.) That failure by Sabrina meant that the repurchase of Sabrina’s percentage of the ownership of OM could not be finalized. Informal negotiations without the benefit of the appraisal failed. (FACC ¶ 35.) When Sushovan did not pay the \$180,000 to Sabrina and the robberies and damage to the store occurred, the Jug Shop went out of business despite Sushovan’s best attempts to keep it afloat. (FACC ¶ 37.)

Sabrina's and Oli's actions have displayed a malicious and willful intent to intentionally sabotage the business, these actions were oppressive to Sushovan personally, and the malicious actions included numerous fraudulent representations that Sabrina would undertake the required tasks to operate OM /Jug Shop as a managing member of the operations. (FACC ¶ 38.) Sabrina had promised to repay Sushovan the shortfall in the initial Jug Shop purchase capital, and to repay Sushovan her share of the start-up costs that Sushovan had paid. (FACC ¶ 39.) Defendant Oli's actions in concert with Sabrina to facilitate her breaches of contract and willful fiduciary misconduct toward Sushovan were also impermissibly malicious, willful, oppressive and/or fraudulent. (FACC ¶ 40.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to

have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

Use of Deposition Testimony

Cross-Defendants posit they are entitled to use deposition testimony in support of their Demurrer and cite *Joslin* in support of their position. In *Joslin* the Fourth District Court of Appeals reversed the trial court's decision to sustain the general demurrer. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 377.) In order to determine whether a court which has taken judicial notice of a document may take the further step of accepting its truth or adopting a proposed interpretation of its meaning, the Court adopted the approach that "judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed." (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 375, citing *Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134.)

Applying the approach to the facts before us, Court could accept the truth of the facts stated in the deposition only to the extent they were not or could not be disputed. Cross-Complainant disputes the Cross-Defendants assertions that Cross-Complainant lacked knowledge, did not negotiate, did not provide consideration, admitted away his claims, or that other family members controlled OM's records. Applying the *Joslin* approach, since Cross-Complainant disputes the factual assertions made in the in the deposition testimony proffered by the Cross-Defendants, the Court will not consider the proffered deposition testimony.

First Cause of Action for Breach of Oral Agreement

Failure to Establish Valid Operating Agreement

Cross-Defendants argue that the Cross-Complainant Sushovan cannot establish the elements of contract formation of the OM Operating Agreement between himself and Cross-Defendants. (Motion at p. 6: 18-28.)

First, this argument does not apply because Cross-Complainant correctly points out that the first cause of action is expressly pleaded as a claim for breach of oral agreement to repay initial capital costs against Sabrina Han. (Opposition at

p. 5: 15-17.)

Second, this argument fails. Cross-Defendants are arguing that Cross-Complainant cannot establish existence of a valid and enforceable contract because Cross-Complainant himself did not negotiate any Operating Agreement, did not make or receive any offer concerning OM's governance and did not provide any consideration in connection with the alleged agreement. (Motion at p. 6: 11-17.)

Just because Cross-Complainant did not negotiate the Operating Agreement himself does not preclude him from being bound to it or proving its existence. On the contrary, Cross-Complainant is a named party to the received and accepted the offer of the Operating Agreement by signing it. (FACC, Ex. A, section III(B).) Neither of the Parties have challenged the validity of signatures to the Operating Agreement. (FACC, Ex. A, pp. 9-10.) The consideration for the Operating Agreement constitutes of the initial contributions to be made by both Cross-Complainant Sushovan Shahi and Cross-Defendant Sabrina Han and the duties assigned to both members. (FACC, Ex. A, section III(B) and (F).)

Private Oral Agreement Does Not Invoke the Sham Pleading Doctrine

Under the sham pleading doctrine, Plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742–743 [affirming an order sustaining Defendants' demurrer without leave to amend when the Plaintiff filed an amended complaint omitting harmful allegations from the original unverified complaint]; see also *Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151 ["If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the Court may take judicial notice of prior pleadings and may disregard any inconsistent allegations."].)

The sham pleading doctrine cannot be mechanically applied. (*Dones v. Life Insurance Company of North America* (2020) 55 Cal.App.5th 665, 688.) The doctrine is not intended to prevent honest complainants from correcting erroneous allegations or to prevent the correction of ambiguous facts. (*Id.*) Rather, the doctrine must be taken together with its purpose, which is to prevent an amended pleading which is only a sham, when it is apparent that no

cause of action can truthfully be stated. (*Id.*)

Cross-Defendants contend that the FACC introduces for the first time a private oral agreement. Cross- Defendants take issue with the new facts pleaded without explanation but do not contend that the new facts are inconsistent with previous pleadings or omitting harmful allegations. (Motion at p. 7: 5-25.)

The Court is not convinced that an example of the sham pleading doctrine has been shown here. In each complaint, Plaintiff alleges that Cross-Defendant Sabrina Han Failed to pay her fair share of the capital contribution for Jug Shop Liquors. (Compare XC ¶14 and FACC ¶ 9.)

Cross-Defendants' Demurrer as to Plaintiff's first cause of action for breach of oral agreement is overruled.

Second Cause of Action for Breach of Written Agreement - MITA

Breach of An Express Provision

The LLC MITA provides, "Buyer shall purchase from Seller, and Seller shall sell to Buyer, 100% of Seller's total Interest in the Company (the "Transferred Membership Interest") for the aggregate purchase price of Purchase Price, which is to be determined once Balance Sheet and Profit and Loss Statement are completed by accountant. ("Total Purchase Price")." (FACC, Ex. B, § 1(a).)

The MITA expressly contemplated a sale of Han's membership interest and a purchase price to be determined through accounting information. (FACC ¶ 53.) The FACC alleges Han failed to proceed with that process and instead demanded \$180,000 without accounting support. (FACC ¶ 29.) These allegations amount to a breach of an express provision of the LLC MITA.

Causation, Damages, and Basis for Attorney's Fees

The FACC alleges that Sabrina essentially made it clear that unless she were paid the sum of \$180,000.00, she openly stated that she was going to allow OM/Jug Shop Liquors to fall into complete disarray. (FACC ¶ 32.) Coupled with the allegations that Cross-Defendant Sabrina's unreasonable demand for \$180,000.00 for her portion of OM, not paying Cross-Complainant back any expenses promised, and ignoring the criminal hardships endured by the store, Cross-Complainant has alleged sufficient facts for causation, and damages.

(FACC ¶¶ 31-41, 53-59.)

Please refer to the Motion to Strike Regarding attorney's fees.

Lack of Standing to Enforce Operating Agreement Is Irrelevant for this Cause of Action

Cross-Defendants argument regarding the enforceability of the Operating Agreement as to the second cause of action for breach of written agreement is misplaced because the second cause of action expressly refers to the LLC MITA written agreement. (FACC ¶¶ 53-59.)

Cross-Defendants' Demurrer as to Plaintiff's second cause of action for breach of written agreement is overruled.

Third Cause of Action for Fraudulent Inducement

Promissory fraud is actionable where a defendant makes a promise without intent to perform and intends to induce reliance. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) The elements are (i) misrepresentation, (ii) knowledge of falsity, (iii) intent to induce reliance, (iv) justifiable reliance, and (v) resulting damages. (*Id.*)

Cross-Complainant Bases Allegations of Fraudulent Inducement on the Breach of Oral Contract and Operating Agreement

Cross-Defendants argue that the third cause of action fails because it is premised on alleged rights "spawned from the OM Operating Agreement." (FACC ¶ 61.) A few allegations later the FACC points to Cross-Defendant Sabrina's shortfall of \$16,565.08 and failure to repay her share of \$50,504.62 which go to the first cause of action for breach of oral agreement. (FACC ¶¶ 63-64.) The lack of contributions by Cross-Defendant Sabrina Han that Cross-Complainant alleges is also covered by the Initial Contribution provision in the Operating Agreement. (FACC, Ex. A, section III(B).) Cross-Complainant bases the fraudulent inducement cause of action on both the Operating Agreement and the Breach of Oral Agreement and Cross-Complainant has standing to allege on the basis of both agreements.

Particularity and Justifiable Reliance

Cross-Defendants argue that The FACC does not plead who made any specific representation, when the alleged statements were made, where they were made, how they were communicated, or what exact words were allegedly spoken. Instead, the pleading relies on generalized assertions that Ms. Han made “promises” and “continued fraudulent promises” (¶¶ 62–65), without identifying a single actionable misrepresentation with the required particularity. (Motion at p. 12: 2-8.)

The FACC alleges that Cross-Defendant Sabrina Han promised she would pay her share of the costs of \$16,565.08 and \$50,504.62 incurred by Cross-Complainant but has not done so. (FACC ¶¶ 63-64.)

Cross-Defendants concede that Cross-Complainant alleges that he relied on Cross-Defendant Sabrina Han’s alleged promises in deciding to enter into the Operating Agreement and to furnish funds. (FACC ¶¶ 63, 67.) Cross-Defendants argue that Cross-Complainant’s sworn testimony establishes that he had no communications with.

First, as explained above, the Court is not considering Cross-Defendants’ proffered deposition testimony for purposes of this demurrer. Second, just because Cross-Complainant and Cross-Defendant Sabrina Han did not negotiate the terms of the Operating Agreement does not mean that the Parties can later rely on an Operating Agreement that both Parties sign and are bound by.

Allegations of Intent, Causation, and Punitive Damages

In considering a demurrer, a court must read the complaint as a whole and accept as true all properly pleaded allegations. (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 225.)

Cross Defendants argue that the third cause of action for promissory fraud relies on conclusory allegations for the intent and causation elements as well as the request for punitive damages. (Motion at p. 12: 18-23.)

The FACC alleges on information and belief that Cross-Defendant Sabrina Han intentionally and deliberately never had any intention of repaying the money owed to Cross Complainant nor did she intend to live up to her promise of responsibly managing the Jug Shop, and Cross-Complainant believes Cross-Defendant Sabrina Han was part of a ruse to allow her to have ownership in a

liquor store with her co-defendant Oli (FACC ¶¶ 65.)

The FACC alleges multiple facts about Cross-Defendant Sabrina Han showing little to no interest to supporting the Jug Shop business and even hostility towards the business. (FACC ¶¶ 16, 21, 25, 29, 32, 33, 36, 38-41.) In light of the facts mentioned above, the FACC sufficiently alleges facts that support allegation that Cross-Defendant Sabrina Han never intended to perform those promises and used them to induce Cross-Complainant to enter the business relationship, fund the purchase, cover Cross-Defendant Sabrina Han's shortfall, and continue making expenditures to protect the business, caused damage, and acted maliciously, willfully, and/or oppressively. (FACC ¶¶ 65-68.)

Cross-Defendants' Demurrer as to Plaintiff's third cause of action for fraudulent inducement is overruled.

Fourth Cause of Action for Intentional Interference with Contractual Relations

To state a claim for intentional interference with contractual relations, a plaintiff must plead: (1) a valid contract between the plaintiff and a third party; (2) the defendant's actual knowledge of the contract; (3) intentional acts designed to induce a breach or disruption of the contract; (4) actual breach or disruption; and (5) resulting damages. (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126.)

Valid Third-Party Contract

As explained earlier, the Operating Agreement is a valid third-party contract because the Operating Agreement is a valid contract between Cross-Complainant and Cross-Defendant Sabrina Han.

Derivative of Operating Agreement

As explained earlier, the Operating Agreement is a valid third-party contract because the Operating Agreement is a valid contract between Cross-Complainant and Cross-Defendant Sabrina Han. Thus Cross-Complainant has standing to assert claims based on the Operating Agreement that he is a party to. (FACC, Ex. A, section III(B).)

Pleading of Knowledge, Intentional Acts, Causation, and Damages

Cross Defendants argue that the allegation that Mr. Oli "knew of the existence of the Operating Agreement" (FACC ¶ 71) is conclusory and does not allege

knowledge of any specific contractual terms. (Motion at p. 14: 20-22.) This allegation can be reasonably inferred by the actions of the Parties since it is undisputed that Cross-Defendant Thalbir Oli managed the Jug Shop five days a week, had substantial experience in the liquor store business, and was offered membership in OM NAMAHA, LLC, the entity that wholly owns and controls the Jug Shop. (FACC ¶¶ 16-24.)

Cross-Defendants further argue that pleading alleges that Cross-Defendant Thalbir Oli merely “facilitated” acts by Cross-Defendant Sabrina Han, without identifying any specific act he took, when it occurred, or how it was designed to induce a breach. (Motion at p. 14: 22-24.) Cross-Defendants provide a case citation for the proposition that conclusory allegations of facilitation or generalized “patterns of misconduct” are insufficient to plead intentional interference. (Motion at p. 14: 24-26; citing *A.F. Arnold & Co. v. Pacific Professional Ins., Inc.* (1972) 27 Cal.App.3d 710, 715.)

First, the *A.F. Arnold* case did not stand for the proposition cited. It did not mention conclusory allegations of facilitation or generalized “patterns of misconduct” but instead discussed the differences between the two torts of interference with prospective economic relationship and intentional interference with contractual relations. (*A.F. Arnold & Co. v. Pacific Professional Ins., Inc.* (1972) 27 Cal.App.3d 710, 715.) Second, the FACC alleges more than passive association: it alleges Oli conspired with Han, acted as a de facto liquor-store operator through Han, facilitated Han’s breaches, and intentionally disrupted the business relationship. (FACC ¶¶ 24-25, 38-41.)

Cross-Defendants’ Demurrer as to Plaintiff’s fourth cause of action for intentional interference with contractual relations is overruled.

Conclusion

For the reasons analyzed above, **Cross-Defendants’ Demurrer to the FACC is overruled in its entirety.**

[Motion to Strike]

Introduction

Cross-Defendants THALBIR OLI, and SABRINA HAN’s Motion to Strike. The Motion to Strike relates to (i) conclusory punitive damages allegations not supported by ultimate facts under Civil Code section 3294; (ii) improper

requests for attorney's fees and restitution absent any pleaded legal basis; and (iii) improper and prejudicial allegations that misstate or contradict the written agreements attached as exhibits and incorporated into the FACC.

For the following reasons, the **Motion to Strike is granted with leave to amend for the attorney's fees requests and denied as to all other requests.**

Defendants request that the following portions to be stricken:

1. Page 13, ¶ 68: "...were malicious, willful and oppressive... For these intentional malicious acts as set forth in this complaint, Sushovan is entitled to an award of punitive damages..."
2. Page 14–15, ¶ 77: "Oli's conduct... was despicable... performed with fraud, oppression or malice so as to justify an award of exemplary or punitive damages..."
3. Page 15, ¶ 78: "Sushovan suffered damages, including punitive damages..."
4. Prayer for Relief, ¶ 2: "For punitive and exemplary damages..."
5. Prayer for Relief, ¶ 3: "For an order awarding... reasonable attorney's fees..."
6. Prayer for Relief, ¶ 4: "For an order of Restitution..."
7. Page 13–14, ¶ 72: "...willfully fail to provide sufficient capital and managerial contributions, intentional failure to participate in repaying debts to third party creditors... intentional withholding of contributing towards OM's startup expenses..."
8. Page 14, ¶¶ 74-76: "...Oli engaged in... misconduct to improperly pressure and/or facilitate Sabrina to breach her contractual obligations by... failing to participate in repaying debts to third party creditors... withholding of contributing towards OM's startup expenses..."

Meet and Confer Requirement

Cross-Defendants satisfied their meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Narayan P. Bhandari. On January 28, through February 4, 2026, the parties exchanged meet and confer emails and were unable to connect by telephone. (Bhandari Decl. at ¶¶18-28.)

Legal Standard

A court's determination of a motion to strike is a matter within its discretion.

(*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on “extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure § 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Punitive Damages

Punitive damages may be awarded in cases of "intentional misrepresentation, deceit, or concealment of a material fact." (Civil Code § 3294 (c)(3).) Explained above in the Demurrer analysis, Plaintiffs have adequately pled their claim for promissory fraud to withstand attack on the pleadings. A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of "malice" or intent to injure plaintiff are required, because fraud is an alternative basis for recovery. (*Stevens v. Sup. Ct. (St. Francis Med. Ctr.)*(1986) 180 Cal.App.3d 605, 610.) Since the fraud claim is sufficiently pleaded, the court denies the motion to strike punitive damages.

Attorney's Fees

In California, "a prevailing party is entitled to attorney's fees only when specifically authorized by statute, contract or law." (*Department of Forestry & Fire Protection v. Le Brock* (2002) 96 Cal.App.4th 1137, 1140.) Here, Cross-Complainant has not pled that he is entitled to attorney's fees via statute, contract, or law. Cross-Defendants' motion to strike is granted with leave to amend as to attorney's fees.

Restitution

Under the law of restitution, an individual may be required to make restitution if he is unjustly enriched at the expense of another. (*Ghirardo v. Antonioli* (1996) 14 Cal.4th 39, 51.) A person is enriched if he receives a benefit at another's expense. (*Id.*) The term "benefit" denotes any form of advantage; thus, a benefit is conferred not only when one adds to the property of another, but also when one saves the other from expense or loss. (*Id.*)

FACC alleges that Cross-Defendants received benefits from Cross-Complainant's payments, business expenditures, and efforts while refusing to contribute or repay as promised. Restitution may be available as an alternative remedy where a defendant has been unjustly enriched. The FACC's restitution request is tied to the same factual allegations underlying the contract, fraud, and interference claims.

Allegations that Contradict Attached Exhibits

Cross-Defendants contend that the FACC repeatedly alleges contractual duties and obligations that are contradicted by the written agreements attached as exhibits and incorporated into the pleading, including assertions that the Operating Agreement imposed obligations requiring Cross-Defendant Sabrina Han to personally: (1) provide sufficient capital and managerial contributions; (2) repay debts to third-party creditors; (3) contribute toward startup expenses; and (4) ensure continued operation of Jug Shop Liquors or prevent eviction.

These allegations are rooted in Section III of the Operating Agreement and the breach of oral agreement. (FACC ¶¶ 42-50; FACC, Ex. A, section III.)

Conclusion

In consideration of the above, **Motion to Strike is granted with leave to amend for the attorney's fees requests and denied as to all other requests. Cross Complainant must file amended pleadings within 15 days of service of notice of entry of this order.**

8. 9:00 AM CASE NUMBER: C25-02606
CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FRENCH, BISA
TENTATIVE RULING:

Before the Court is Defendants Bisa French, Enrik Melgoza, Miguel Castillo and Joseph England's (collectively "Individual Defendants") demurrer. The demurrer relates to Plaintiffs Jameiz Terrell, Michelle Sequeira, and Alayna Woody's (collectively "Plaintiffs") Complaint for (1) Sex Discrimination [all Plaintiffs against the City and RPD]; (2) Race Discrimination [Ms. Terrell against the City and RPD]; (3) Sexual Orientation Discrimination [Ms. Terrell against the City and RPD]; (4) Harassment [all Plaintiffs against all Defendants]; (5) Retaliation [all Plaintiffs against the City and RPD]; (6) Failure to Prevent Discrimination and Harassment [all Plaintiffs against the City and RPD]; (7) Violation of Labor Code sections 233, 234, and 246.5 [Ms. Terrell against the City and RPD]; and (8) Intentional Infliction of Emotional Distress [all Plaintiffs against Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England].

Individual Defendants demur to Plaintiffs' causes of action for harassment on the grounds that Plaintiffs fail to state a claim for harassment (§ 430.10(e)) and their allegations render their claim uncertain and unintelligible (§ 430.10(f)); they demur to Plaintiffs' claim for intentional infliction of emotional distress on the grounds that (1) Plaintiffs failed to allege compliance with the Government Tort Claims Act, (2) Individual Defendants are entitled to statutory immunity, (3) Plaintiffs' claim fails on the merits, (4) Plaintiffs fail to state a claim for IIED (§ 430.10(e)), and (5) Plaintiffs' allegations render their claim uncertain and unintelligible (§ 430.10(f)).

Plaintiffs oppose Individual Defendants' demurrer on two grounds. As to the fourth cause of action for harassment, Plaintiffs contend that the alleged conduct, including GPS tracking, punitive beat transfers, negative performance evaluations, unlawful detention, and concealment of evidence, constitutes a severe and pervasive pattern of sex-based harassment falling outside legitimate management

authority. As to the eighth cause of action for intentional infliction of emotional distress, Plaintiffs argue that the Government Claims Act does not bar their claim because lost wage damages are exempt from presentment under Government Code section 905(c), that discretionary immunity is premature at the pleading stage, and that the alleged conduct satisfies the extreme and outrageous standard.

For the following reasons, the Individual Defendants' demurrer to Plaintiffs' fourth cause of action for harassment and eighth cause of action for intentional infliction of emotional distress is **SUSTAINED WITH LEAVE TO AMEND** as to all Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

I. Factual Allegations and Background

This suit arises out of an employment dispute between current and former police officers with the Richmond Police Department ("RPD"). (Complaint ("Compl.") at 2:2-4.)

A. Jameiz Terrell

i. Background and Performance History

Ms. Terrell, a Black, lesbian woman, graduated from the Napa Valley Police Academy in 2015. (Compl. at 4:17-18; 6:26-28.) On July 11, 2015, she was hired by RPD, and in December of that year she completed her training and became a sworn peace officer. (*Ibid.*) In April 2019, Ms. Terrell became a Gang Unit Detective and SWAT Team Operator. (*Id.* at 7:4-6.) She became a member of the Tactical Response Team on January 6, 2020. (*Ibid.*) From 2019 to 2023 she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearms. (*Id.* at 7:7-8.) Ms. Terrell was employed continuously by RPD until her alleged constructive termination on October 26, 2023. (*Id.* at 4:16-17; 6:28-7:1.)

While employed by RPD, Ms. Terrell completed approximately 75 certified training courses; in 2017 she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction

of violence. (Compl. at 7:2-4.)

Ms. Terrell alleges that she was targeted and “experienced severe discrimination, harassment, and retaliation” at the hands of supervisor Nathan Lonso. (Compl. at 7:14-15.) She alleges that he “singl[ed] her out for unwarranted scrutiny and attempt[ed] to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (*Id.* at 7:15-17.) Her Complaint does not elaborate on who the nonprotected colleagues were or what preferential treatment they received.

In April of 2020, Ms. Terrell alleges she and another officer filed a complaint against Mr. Lonso; the complaint prompted an Internal Affairs investigation, which led to Mr. Lonso’s termination. (Compl. at 7:17-19.) Ms. Terrell alleges that Mr. Lonso was ultimately reinstated by RPD. (*Ibid.*)

ii. Road Rage Incident

On October 17, 2020, Ms. Terrell was allegedly involved in an off-duty, road rage incident in Fairfield, California, with gang-related subjects wherein she alleges “she brandished her firearm in an attempt to defuse the situation.” (Compl. at 7:23-24.) The Fairfield Police Department investigated the incident and concluded no crime had occurred. (*Id.* at 7: 25-26.) Ms. Terrell alleges she followed department protocol by immediately reporting the incident to RPD. (*Id.* at 7:26.) Nearly a year later, on October 14, 2021, RPD proposed disciplining Ms. Terrell for the incident by placing her on a 10-hour suspension without pay and removing her from her Special Response Team assignment. (*Id.* at 7:27-28.)

A subsequent *Skelly* Hearing issued a finding on March 3, 2022, that, because Ms. Terrell had received “numerous awards and commendations for outstanding police work” even as recently as January of 2022, the proposed disciplinary action of removing Ms. Terrell from her Special Response Team assignment was “much too severe and [was] NOT SUSTAINED.” (Compl. at 7:28-8:9.) The *Skelly* officer also noted that while allegations of inequitable treatment had been raised, issues related to discrimination were outside the scope of the *Skelly* officer’s assignment, and the officer instead “urg[ed] the “Human Resources Department

[to] conduct a thorough information.” (*Id.* at 8:3-6.) Ms. Terrell alleges “on information and belief” that no human resources inquiry was undertaken into the discrimination issue flagged by the *Skelly* officer. (*Id.* at 8:6-7.)

RPD opted to overrule the *Skelly* officer’s findings and remove Ms. Terrell from her position on the Special Response Team anyway. (Compl. at 8:9.) On August 22, 2023, however, the department reversed course and agreed to adopt the *Skelly* officer’s findings; accordingly, Ms. Terrell was placed back on her Special Response Team assignment. (*Id.* at 8:8-12.)

iii. Flying Armed

Ms. Terrell alleges that during an RPD wiretap investigation on which Ms. Terrell was working, communications were intercepted on August 19, 2021, that indicated that a suspect with whom Ms. Terrell had recent contact, would coincidentally be on the same aircraft as Ms. Terrell for an upcoming flight. (Compl. 8:15-18.) With the apparent blessing of ATF, Ms. Terrell opted to fly armed for her safety due to her recent contact with the suspect. (*Id.* at 8:18-20.) On August 9, 2022, RPD issued a summary reprimand regarding the incident, stemming from an anonymous complaint received by the department. (*Id.* at 8:20-22.) Ms. Terrell authored a rebuttal to the reprimand wherein she stated she believed the discipline was retaliation for her complaint about Mr. Lonso; Ms. Terrell alleges that RPD did not act on her report of the retaliation. (*Id.* at 8:22-23.)

iv. Alleged Pattern of Targeting by Castillo and Melgoza

Enrik Melgoza and Miguel Castillo are alleged to be close friends of Mr. Lonso’s. (Compl. at 8:13-14.) At a December 14, 2022 arbitration hearing regarding Mr. Lonso’s termination, Mr. Castillo testified as a character witness for Mr. Lonso. (*Id.* at 9:18-19.) Ms. Terrell alleges Mr. Castillo and Mr. Melgoza repeatedly targeted her during the course of her employment with RPD. (*Id.* at 8:13-15.)

v. Melgoza

On January 19, 2022, Ms. Terrell alleges Mr. Melgoza told her she would be switched to Beat 7. (Compl. at 8:24-28.) Ms. Terrell alleges that Mr. Melgoza’s

reasoning for the switch – that he believed another officer, who sued the department for discrimination, harassment, and retaliation, would not provide Ms. Terrell proper cover during proactivity stops – was pretextual. (*Id.* at 8:24-28.) She alleges that “Beat 7 was known as the busiest beat in the city, where officers were placed when they were being punished.” (*Id.* at 8:27-28.) She also alleges that during the same period, “nonprotected officers with less seniority than Terrell received preferential treatment in the form of easier beats.” (*Id.* at 8:28-9:2.)

On January 2, 2023, Mr. Melgoza allegedly completed a Transfer Request endorsement declining to recommend Ms. Terrell for the position of Field Training Officer (“FTO”), citing excessive sick leave usage in 2022 and claiming that Ms. Terrell struggled with basic patrol functions and decision-making. (Compl. at 9:20-27.) Ms. Terrell alleges such performance issues had never previously been raised with her. (*Id.* at 9:25-26.) On January 9, 2023, Mr. Melgoza confirmed to Ms. Terrell that the sick leave usage was his reason for the denial. (*Id.* at 9:26-27.) It was only after the Richmond Police Officers Association (“RPOA”) complained on her behalf that Ms. Terrell was granted an interview for the FTO position. (*Id.* at 9:28-10:2.) A lengthy evaluation was subsequently added to her personnel file, which RPD Police Chief Bisa French later ordered removed. (*Id.* at 10:2-3.) Ms. Terrell alleges that RPD was ultimately required to modify its FTO endorsement process as a result of Mr. Melgoza’s conduct, though the Complaint does not elaborate on the nature of that modification. (*Id.* at 9:27-28.)

On March 13, 2023, Mr. Melgoza allegedly presented Ms. Terrell with her 2022 performance evaluation and directed her to sign and return it the same day. (Compl. at 10:4-5.) The evaluation criticized Ms. Terrell for excessive sick leave usage, comparing her usage to the purported team average and including approximately 40 hours of workers’ compensation-related medical leave in that figure. (*Id.* at 10:5-9.) The evaluation also referenced the 2021 flying-armed incident and, based on a purported random audit of Ms. Terrell’s body camera footage conducted by Castillo, criticized her for discussing her firearm with a civilian. (*Id.* at 10:10-15.) Ms. Terrell received a verbal warning based on the body

camera finding. (*Id.* at 10:15.) Chief French determined that an Internal Affairs investigation was unwarranted but allegedly advised Ms. Terrell that “they were ‘gunning’ for her.” (*Id.* at 10:16-17.) The Complaint does not clarify who specifically “they” is, however it does allege that nonprotected officers who used sick leave were not subject to comparable scrutiny. (*Id.* at 10:9-10, 16-17.)

On March 21, 2023, a meeting was allegedly held with Mr. Melgoza, Ms. Terrell, the RPOA President, and another officer regarding Ms. Terrell’s performance evaluation. (Compl. at 10:18-19.) Mr. Melgoza agreed to revise certain sections, including the sick leave discussion, but failed to do so. (*Id.* at 10:20-22.)

On June 5, 2023, Mr. Melgoza allegedly issued Ms. Terrell a negative comment card for responding to work emails while on sick leave. (Compl. at 10: 23-24.)

On September 21, 2023, Mr. Melgoza, as SWAT team leader, allegedly placed Ms. Terrell on rear security without explanation rather than in her usual position in the stacking order, replacing her with a nonprotected officer who had not attended SWAT school. (Compl. at 10: 25-27.)

vi. Castillo

On March 16, 2022, Mr. Castillo and Ms. Terrell allegedly responded to a child custody dispute. (Compl. at 9:3.) A lieutenant allegedly ordered the child to be left with the mother however Mr. Castillo went to the mother’s home and took the child, which prompted the mother to complain to the Richmond City Council. (*Id.* at 9:4-5.) An Internal Affairs investigation into Castillo’s conduct followed. (*Id.* at 9:6.) The investigating officer, then-sergeant Joseph England, allegedly concluded that Mr. Castillo was targeting Ms. Terrell. (*Id.* at 9:6-7.) The Complaint does not specify what conduct constituted the targeting, how the incident adversely affected Ms. Terrell, or what connection it bore to her protected status or activity.

On August 15, 2022, Mr. Castillo allegedly directed Ms. Terrell to respond as primary officer to a service call outside her beat while she was already on another call. (Compl. at 9:8-9.) Several days later, on August 18, 2022, Mr. Castillo allegedly telephoned Ms. Terrell demanding to know what report she was writing and its case number, then hung up on her without further explanation. (*Id.* at

9:10-11.)

vii. Detective Selection

On November 9, 2022, the Office of the Chief of Police released new assignment selections and Ms. Terrell allegedly learned she had not been selected as a detective. (Compl. at 9:12-13.) When she sought to look at the selection paperwork to find out how she scored she discovered she was listed as “appointed” under the Domestic and Sexual Violence Unit. (*Id.* at 9:13-15.) Ms. Terrell allegedly followed up with Chief French’s secretary to inquire about the inconsistency and “the secretary replied that she thought Terrell had been selected and was uncertain what changed.” (*Id.* at 9:15-17.) The Complaint does not identify who made the final section decision or on what basis.

viii. Request for Reassignment

Ms. Terrell allegedly made four requests (February 1, 2022, November 8, 2022, March 23, 2023, and June 27, 2023) to Captain Matt Stonebreaker to be transferred from Team 2 to Team 1 to avoid supervision by Mr. Melgoza and Mr. Castillo. (Compl. at 11:2-6.) In her final request, Ms. Terrell noted that adverse incidents had continued since her prior requests; RPD denied all four requests. (*Id.* at 11:6-9.)

ix. Resignation

On October 23, 2023, Ms. Terrell submitted her resignation, effective October 26, 2023. (Compl. at 11:12.) During her exit interview, Chief French allegedly acknowledged that Mr. Castillo and Mr. Melgoza had been targeting Ms. Terrell and stated that Chief French had been unable to protect Ms. Terrell. (*Id.* at 11:13-15.) On her final day, Ms. Terrell allegedly reported to SWAT team training and was directed by Melgoza to report to desk duty instead. (*Id.* at 11:16-18.)

B. Michelle Sequeira

Background and Performance History

Ms. Sequeira, a woman, was hired by RPD as a police officer trainee on May 13, 2019. (Compl. at 11:22-23.) She became a sworn police officer and promoted to the rank of Police Officer on November 18, 2019. (*Id.* at 11:23-24.) Ms. Sequeira

was employed continuously by RPD until her termination on July 3, 2025. (*Id.* at 11:26-27.)

Ms. Sequeira received a performance appraisal for the period of November 18, 2019, through November 18, 2020, with an overall rating of “Meets Expectations.” (Compl. at 12:6-8.) The appraisal noted that her report writing had progressively improved and her reports had become complete and concise. (*Id.* at 12:8-9.) She received a second appraisal for the period of November 18, 2020, through November 18, 2021, again rated “Meets Expectations.” (*Id.* at 12:10-12.) That appraisal noted that she had continuously improved her report writing and made an effort to seek assistance from more tenured officers. (*Id.* at 12:12-14.)

In March of 2024, Ms. Sequeira received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (Compl. at 12:1-3.) She also received commendations from the chiefs of police of Pittsburg and San Francisco in September and October of 2023. (*Id.* at 12:3-5.)

Motor Vehicle Accident

On June 17, 2022, while on patrol Ms. Sequeira was allegedly involved in a motor vehicle collision at the intersection of 34th Street and McBryde Avenue in Richmond. (Compl. at 12:15-16.) Ms. Sequeira, traveling on 34th Street, failed to yield to a vehicle traveling on McBryde Avenue. (*Id.* at 12:16-18.) In the aftermath of the collision, she allegedly believed she had stopped before proceeding through the intersection. (*Id.* at 12:18-19.)

Performance Improvement Plan

In or about November of 2022, Ms. Sequeira received her performance appraisal for the period of November 18, 2021, through November 18, 2022, which was rated “Meets Expectations.” (Compl. at 12:20-22.) Despite prior appraisals reflecting improvement in her report writing, the appraisal allegedly criticized her for struggling with timely report submission. (*Id.* at 12:22-24.) On November 13, 2022, she was placed on a Performance Improvement Plan (“PIP”), citing spelling and grammatical errors, incomplete preliminary investigations, and delayed report submissions. (*Id.* at 12:24-26.) Ms. Sequeira alleges “on information and

belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 12:26-27.)

Letter of Instruction and Removal from Collateral Intelligence Unit

On December 26, 2022, Ms. Sequeira was allegedly assigned to Beat 8. (Compl. at 13:3.) While on that assignment, she failed to respond to a text message from Mr. Castillo because she was using the restroom and was unable to hear him on a radio call. (*Id.* at 13:4-6.) Mr. Castillo had allegedly been tracking Ms. Sequeira’s location via GPS, which Ms. Sequeira alleges was in violation of RPD policy. (*Id.* at 13:6-7.) Mr. Castillo criticized Ms. Sequeira for using the restroom at RPD’s dispatch building and directed her to use a gas station instead; she alleges this was “in marked contrast to the treatment of other officers.” (*Id.* at 13:7-9.) On January 18, 2023, Ms. Sequeira was issued a Letter of Instruction based on accusations that she failed to follow a lawful order from Mr. Castillo and was disrespectful and unprofessional. (*Id.* at 13:1-2.) She was subsequently removed from her assignment on the Collateral Intelligence Unit without being informed of the disciplinary action or offered union representation. (*Id.* at 13:9-11.)

Domestic Violence Call and Letter of Reprimand

On August 6, 2023, Ms. Sequeira allegedly responded to a domestic violence call and made contact with the male suspect. (Compl. at 13:15-16.) While gathering the suspect’s information, she was allegedly instructed by a sergeant to contact the victim instead. (*Id.* at 13:16-18.) To that end, she placed the suspect in the rear of her patrol car and contacted the victim. (*Id.* at 13:18-19.) She later returned to her patrol vehicle and found that the suspect had been taken by other officers to RPD for booking. (*Id.* at 13:19-20.) A citizen subsequently found the suspect’s wallet and returned it to the department. (*Id.* at 13:20.) When the suspect later contacted RPD claiming money was missing from his wallet, Ms. Sequeira was allegedly the only officer investigated in relation to the incident. (*Id.* at 13:20-22.) On February 15, 2024, Ms. Sequeira received a Letter of Reprimand from Chief French, which alleged that Ms. Sequeira “improperly handled and cared for potential evidence or personal property belonging to another person, ultimately losing a wallet that contained personal identification and \$1,320 in

cash.” (*Id.* at 13:22-25.)

Administrative Leave and Accident Scene Incident

On or about April 16, 2024, Chief French allegedly learned of the existence of a citizen’s security camera that captured Ms. Sequeira’s June 17, 2022, motor vehicle collision. (Compl. at 13:26-27.) The video from the incident showed that Ms. Sequeira “failed to come to a complete stop before proceeding through the intersection.” (*Id.* at 13:27-28.) Allegedly, based on the new evidence, Ms. Sequeira was placed on administrative leave on April 18, 2024, pending the outcome of an investigation. (*Id.* at 13:28-14:2.) The notice of administrative leave Ms. Sequeira received did not disclose the basis for the investigation and it was not until April 23, 2024, that she learned that it related to the 2022 motor vehicle collision. (*Id.* at 14:2-6.)

Upon learning the nature of the investigation and administrative leave, Ms. Sequeira allegedly met fellow-police officer and plaintiff Alayna Woody at the accident scene at 34th Street and McBryde Avenue on April 23, 2024, so Ms. Sequeira could reconstruct the accident and refresh her recollection of it. (Compl. at 14:5-9; 17:1-2.) Both officers were off duty. (*Id.* at 17:3-4.) Ms. Sequeira’s personal vehicle was lawfully parked on the public street, and the two officers walked the four corners of the intersection. (*Id.* at 14:9-11; 17:3-4.)

Then, as Ms. Sequeira and Ms. Woody sat in Ms. Sequeira’s parked vehicle, a black unmarked Ford Explorer patrol vehicle allegedly approached and parked facing the wrong direction on the street, nose-to-nose approximately two feet from Ms. Sequeira’s vehicle, restricting her ability to move. (Compl. at 14:11-13; 17:4-6.) The Ford Explorer carried the Internal Affairs Investigator Mr. England and RPD’s Manager of the Office of Professional Accountability, Eddie Aubrey. (*Id.* at 14:11-13.)

Mr. England allegedly instructed Ms. Woody to exit the vehicle in a stern tone and ordered her to stand behind it – a position Ms. Woody recognized, based on her training and experience, as where officers place persons being detained during a traffic enforcement stop. (Compl. at 17:6-9.) Mr. England and Mr. Aubrey then

questioned Ms. Sequeira while she remained seated in the vehicle, with Mr. England acting as cover officer. (*Id.* at 17:9-11.)

Mr. England and Mr. Aubrey subsequently instructed Ms. Woody to leave the area, threatening to “call [her] in.” (Compl. at 17:11-12.) Ms. Woody, fearful of further adverse employment action, complied and drove away. (*Id.* at 17:12-14.) Ms. Sequeira alleges she, too, was threatened by Mr. England and Mr. Aubrey, although she does not elaborate on what threats were made against her specifically. (*Id.* at 14:15-16.) Plaintiffs both allege the encounter constituted an unlawful detention. (*Id.* at 14:13-15.)

Ms. Woody subsequently filed a complaint against Mr. England and Mr. Aubrey based on this incident, discussed at greater length *infra*, and Mr. England and Mr. Aubrey were removed from the investigation into Ms. Sequeira’s motor vehicle collision. (Compl. at 14:18-20.) RPD hired Karen Kramer from Kramer Workplace Investigations to take over the investigation into Ms. Sequeira’s motor vehicle collision. (*Id.* at 14:20-22.) Kramer Workplace Investigations is allegedly “a long-time public sector investigator, particularly in law enforcement investigations,” and thus, according to Plaintiffs’ Complaint, “hardly an independent and unbiased investigator.” (*Id.* at 14:20-22.)

In December of 2024, while still on administrative leave, Ms. Sequeira received a performance appraisal for the period of November 18, 2023, to November 18, 2024. (Compl. at 14:23-26.) Her overall rating was “Meets Expectations” although the appraisal was limited in nature because she was on administrative leave for most of the rating period. (*Id.* at 14:24-26.)

Termination

On February 6, 2025, Ms. Sequeira received a Notice of Intent to Terminate from Chief French. (Compl. at 14:27.) The notice stated that Ms. Sequeira “‘falsely claimed on multiple occasions – under oath and under penalty of perjury – that [she] stopped at the stop sign prior to hitting [the other] vehicle on June 17, 2022.’” (*Id.* at 14:28-15:1.) The notice also included the allegation that Ms. Sequeira engaged in “‘deceitful misconduct.’” (*Id.* at 15:2.)

A *Skelly* hearing was convened and Richmond Fire Chief Aaron Osorio, who served as *Skelly* officer, sustained the proposed discipline. (Compl. at 15:4-5.) Ms. Sequeira alleges that Chief Osorio's finding stemmed from a "clear conflict of interest," however she does not elaborate on the basis of the conflict. (*Id.* at 15:5-6.)

On July 3, 2025, Ms. Sequeira was terminated. (Compl. at 15:7.) The Notice of Final Discipline again stated that Ms. Sequeira had falsely claimed on multiple occasions, under oath and under penalty of perjury, that she stopped at the stop sign before the June 17, 2022 collision, and again characterized her conduct as "deceitful misconduct." (*Id.* at 15:8-15.) Ms. Sequeira alleges she genuinely believed she had stopped and the characterization of her conduct as deliberate dishonesty is without support. (*Id.* at 15:10-15.)

Ms. Sequeira alleges that the Notice of Final Discipline also included additional accusations she characterizes as false and misleading, including a reference to an unrelated minor traffic collision on August 6, 2021, and the December 26, 2022 incident with Mr. Castillo where RPD alleged she was "'disrespectful and unprofessional'" for what she describes as "protesting her mistreatment by defendant Castillo." (Compl. at 15:21-28.) She alleges that these additional accusations illustrate Defendants' disparate treatment of female officers in that male officers allegedly engaged in serious misconduct with little or no consequences during the same period. (*Id.* at 15:16-20.) Plaintiffs' Complaint does not identify any specific male officers or describe the nature of their alleged misconduct apart from describing the conduct as "serious civil rights violations." (*Ibid.*)

On August 11, 2025, the Commission on Peace Officer Standards and Training ("POST") notified Ms. Sequeira that it had closed its case against her for dishonesty without further action, citing a lack of sufficient evidence to substantiate the alleged conduct by clear and convincing evidence or a determination that the conduct did not warrant decertification or suspension. (Compl. At 16:2-9.)

C. Alayna Woody

Background and Performance History

Ms. Woody, a woman, was hired as a Police Officer Trainee (“PTO”) by RPD on May 13, 2019, and became a sworn peace officer promoted to the rank of Police Officer on November 18, 2019. (Compl. at 16:14-16.) She was released from the PTO program to solo beat patrol May 31, 2020. (*Id.* at 16:16-17.)

Ms. Woody received numerous commendations during her tenure with RPD. (Compl. at 16:18-25.) On March 5, 2021, she was praised for her patience and professionalism in handling a call involving a mentally unstable and combative person. (*Id.* at 16:18-20.) On April 18, 2021, she received a summary commendation for conducting 112 vehicle enforcement stops resulting in five firearm-related arrests. (*Id.* at 16:20-22.) She received additional commendations on December 9, 2022, October 19, 2023, and March 22, 2024. (*Id.* at 16:22-23.) In March 2024 she also received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (*Id.* at 16:23-25.)

Alleged Pattern of Targeting by Castillo

Ms. Woody alleges that, like Ms. Terrell and Ms. Sequeira, she experienced problems with Mr. Castillo, who singled her out for unwarranted criticism and other adverse employment actions. (Compl. at 16:26-28.) The Complaint does not identify any specific incidents, dates, or conduct attributable to Mr. Castillo with respect to Ms. Woody.

Complaint About England and Aubrey Accident Scene Incident

On April 23, 2024, Ms. Woody accompanied Ms. Sequeira to the accident scene at 34th Street and McBryde Avenue where she alleges she was illegally detained by Mr. England and Mr. Aubrey. (see *ante*, “Administrative Leave and Accident Scene Incident.”) On or about April 25, 2024, Ms. Woody filed a complaint against Mr. England and Mr. Aubrey regarding the encounter. (Compl. at 17:14-15.) In her complaint, Ms. Woody wrote:

I no longer feel as safe and question my safety and the rights I have in my place of employment. I also have lost

faith and trust in the department's [Internal Affairs] process and ultimately the chief who they report to. ... I have serious concerns over how my future treatment in the department will be, retaliation for filing this complaint, for what transpired and for my own emotional, physical, and mental health. This was a shameful exercise of the department's power and needs to be addressed immediately.

(Compl. at 17:14-20.)

Shortly thereafter, Chief French met with Ms. Woody; the chief characterized Ms. Woody's allegations as serious and assured her she would be protected from retaliation. (Compl. at 17:21-22.) Chief French subsequently promoted Mr. England from sergeant to lieutenant. (*Id.* at 9:7; 17:23-24.) Ms. Woody alleges that, in contrast to the treatment of other officers (though she does not identify any other officers or a specific policy), Mr. England was not placed on desk duty during the investigation of her complaint. (*Id.* at 17:24-25.)

Chief French assigned investigation into Ms. Woody's complaint to Karen Kramer of Kramer Workplace Investigations – the same investigator concurrently investigating the accusations against Ms. Sequeira. (Compl. 14:20-22; 17:26-28.) Although video of Ms. Sequeira's accident at the same intersection was located from years earlier, Defendants represented that no video of the alleged unlawful detention existed. (*Id.* at 18:1-2.) Ms. Woody alleges "on information and belief" that Mr. England deliberately concealed the video to cover up his misconduct. (*Id.* at 18:2-3.) She alleges no factual basis for her information and belief.

On January 15, 2025, RPD issued a memorandum to Ms. Woody notifying her that Kramer did not sustain her complaint that Mr. England and Mr. Aubrey had unlawfully detained her. (Compl. at 18:4-5.) Ms. Woody alleges that Kramer's investigation was "incompetent and corrupt." (*Id.* at 18:19-20.)

Letters of Instruction

On December 30, 2023, and September 20, 2024, Ms. Woody received what she

alleges were “unwarranted” Letters of Instruction, a form of written warning, for her report preparation. (Compl. at 18:22-23.) She alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 18:21-24.) Notably, Ms. Woody’s performance appraisals for the period of November 2023 through November 2024 reflected that she consistently delivered exemplary performance and that her written reports were precise, well-structured, and submitted promptly. (*Id.* at 18:25-28.) The Complaint does not identify who issued the Letters of Instruction or attempt to explain the discrepancy between the written warnings and contemporaneous performance appraisal.

II. Procedural Background

Ms. Terrell filed a complaint with the California Civil Rights Department (“CRD”) on September 20, 2024, and sought and received an immediate right-to-sue letter. (Compl. at 4:1-4, Exhibit A.) Ms. Sequeira and Ms. Woody filed their own complaints with the CRD on September 10, 2025, and sought and received immediate right-to-sue letters. (Compl. at 4:5-12, Exhibit B, Exhibit C.)

This judicial complaint in this action was filed September 11, 2025. The individual defendants in this case – Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England – collectively filed the instant demurrer on January 9, 2026. The City of Richmond and RPD also filed a demurrer to challenge the claims against them in this action on November 24, 2025; that motion is heard concurrently with the instant motion.

III. Meet and Confer Efforts

Before a responding party files a demurrer, the parties shall meet and confer at least five days prior to the date the responsive pleading is due, in person, by telephone, or by videoconference. (Code Civ. Proc., § 430.41(a)(2).)

Here, the Individual Defendants were not served with the Complaint until November 25, 2025, when Plaintiff’s counsel Robert Schwartz served Defense counsel, Nicholas Grethen’s office with Notices of Acknowledgment and Receipt of the Complaint. (Declaration of Nicholas M. Grether in Support of Individual

Defendants’ Demurrer to Plaintiffs’ Complaint (“Grether Dec.”) ¶7.) Mr. Grether signed and returned those notices on December 10, 2025, making the due date for responsive pleadings January 9, 2026. (*Id.* ¶8.) Mr. Grether emailed Mr. Schwartz on December 22, 2025, requesting Mr. Schwartz’s availability to meet and confer prior to January 2, 2026, regarding the bases for the Individual Defendants’ demurrer. Receiving no response, Mr. Grether followed up with a subsequent email on December 30, 2025, seeking Mr. Schwartz’s availability to meet and confer, to which he received no reply until January 5, 2026. (Grether Dec. ¶11.) Mr. Schwartz in his January 5, 2026, reply said he would be available to meet and confer later the same day or on January 6, 2026. (Grether Dec., Exhibit 2.) When Mr. Grether called Mr. Schwartz on January 6, 2026, he received no answer. (*Id.* ¶12.)

Despite Mr. Grether’s good faith efforts, the parties were unable to meet and confer prior to the January 2, 2026 deadline as a result of Mr. Schwartz’s unavailability. Defense counsel is substantially in compliance with his statutory obligation, and accordingly, the Court proceeds with its ruling. (Code Civ. Proc., § 430.41(a)(4).)

IV. Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v.*

Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.)

“Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) “[A] pleading that [does] no more than assert boilerplate allegations [however]...would not be sufficient nor would allegations of information and belief that merely asserted the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5; see also *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.) Regardless of whether a Plaintiff has requested leave to amend, it is an abuse of discretion to sustain a demurrer to an initial complaint without leave to amend unless the complaint shows on its face that it is incapable of amendment. (*Cabral v. Soares* (2007) 157 Cal.App.4th 1234, 1240; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 411.)

V. Analysis

A. Harassment

It is a violation of FEHA to engage in or permit harassment of an employee in the workplace. (Gov. Code § 12940(j)(1).) An employee of an entity subject to FEHA is personally liable for harassment. (Gov. Code § 12940(j)(3); *Page v. Superior Court* (1995) 31 Cal.App.4th 1206, 1211.)

The elements of harassment are (1) plaintiff is a member of a protected class; (2) plaintiff was subjected to unwelcome conduct or comments; (3) the harassment was because of plaintiff's membership in the protected class; and (4) the harassment altered the conditions of employment and created an abusive working environment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860,

876.) To state a claim for harassment, a plaintiff must show that the workplace is permeated with discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 263.)

Discrimination and harassment are in separate categories under FEHA; “discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer’s business or performance of the supervisory employee’s job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Ms. Terrell

1. Bisa French

Ms. Terrell alleges that Chief French approved discipline and adverse employment actions against her, told her that supervisors were “gunning” for her without taking remedial action, and acknowledged during an exit interview that Ms. Terrell had been targeted but stated that she, Chief French, was unable to protect her. (Compl. at 10:16-17; 11:13-15.) Chief French’s approval of discipline and adverse employment actions constitutes personnel management and cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.) Her remaining conduct – telling Ms. Terrell that supervisors were targeting her and acknowledging the targeting at the exit interview – describes inaction and failure to intervene, not affirmative harassing conduct directed at Ms. Terrell. Furthermore, none of the aforementioned conduct is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation.

The harassment claim against Chief French as to Ms. Terrell therefore fails on both the *Janken* personnel management ground and the absence of a protected

status nexus.

2. Enrik Melgoza

All of the conduct alleged against Mr. Melgoza – the Beat 7 transfer, the FTO denial, the negative performance evaluation, the negative comment card, the SWAT reassignment, and the denial of Ms. Terrell’s transfer request – constitutes personnel management. (See *ante*, “Alleged Pattern of Targeting by Castillo and Melgoza.”) None of it falls outside the scope of supervisory management functions, and none of it is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation. On the contrary, Ms. Terrell explicitly contends that Mr. Melgoza’s conduct was part of a scheme to retaliate against Ms. Terrell for her complaint against Mr. Lonso. (Compl. at 7:20-21, 8:13-15, 8:22-27.)

The harassment claim against Mr. Melgoza as to Ms. Terrell therefore fails on the same grounds as that of Chief French.

3. Miguel Castillo

The conduct alleged against Mr. Castillo includes the child custody incident, the service call redirect, the rude phone call, and the body camera audit conducted in concert with Mr. Melgoza. (Compl. at 9:3-11, 10:12-15.) The service call redirect and body camera audit are personnel management functions. The child custody incident, while unusual, describes conduct directed at a third party – the mother who complained to the City Council – rather than harassing conduct directed at Ms. Terrell. The rude phone call is the only alleged conduct arguably outside the scope of supervisory management, but a single incident of this nature does not, as a matter of law, constitute conduct sufficiently severe or pervasive to alter the conditions of employment. (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170.) Independently, none of the conduct attributed to Mr. Castillo is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation; her own allegations attribute his targeting to personal retaliation for the Lonso complaint. (Compl. at 7:20-21, 8:13-15, 8:22-27, 9:18-19.)

The harassment claim against Mr. Castillo as to Ms. Terrell therefore fails.

4. Joseph England

The Complaint does not allege any conduct by Mr. England directed at Ms. Terrell. The harassment claim against Mr. England as to Ms. Terrell therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Terrell is **SUSTAINED WITH LEAVE TO AMEND**.

Ms. Sequeira

1. Bisa French

Ms. Sequeira alleges that Chief French gave her a Letter of Reprimand, placed her on administrative leave, issued a Notice of Intent to Terminate, and ultimately terminated her following a sustained *Skelly* hearing. (Compl. at 13:15-28, 14:1-4, 14:27-15:3, 15:7.) All of this conduct constitutes personnel management and cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.)

The harassment claim against Chief French as to Ms. Sequeira therefore fails.

2. Enrik Melgoza

The Complaint does not allege any conduct by Mr. Melgoza directed at Ms. Terrell. The harassment claim against Mr. Melgoza as to Ms. Sequeira therefore fails.

3. Miguel Castillo

The conduct alleged against Mr. Castillo as to Ms. Sequeira consists of tracking her location via GPS in alleged violation of RPD policy, criticizing her for using the restroom at RPD's dispatch building and directing her to use a gas station instead, and issuing a Letter of Instruction. (Compl. at 13:1-14.) The Letter of Instruction is personnel management. The GPS tracking and restroom criticism are more colorable as conduct outside the scope of supervisory management, but both fail on the protected status nexus; neither allegation connects Mr. Castillo's conduct to Ms. Sequeira's sex or other protected characteristic. Ms. Sequeira's allegation that this conduct was "in marked contrast to the treatment of other officers" is a passing reference that identifies no comparator and provides no factual basis

connecting the differential treatment to protected characteristics. (*Id.* at 13:7-9.)

The harassment claim against Mr. Castillio as to Ms. Sequeira therefore fails.

4. Joseph England

Ms. Sequeira alleges that Mr. England approached her at the accident scene on April 23, 2024, parked nose-to-nose with her vehicle, prevented her from leaving, questioned her, and then ordered her to leave while making unspecified threats. (Compl. at 14:11-17, see *ante* “Administrative Leave and Accident Scene Incident.”) Even assuming this single incident constitutes conduct outside the scope of supervisory management, it does not support a harassment claim for two independent reasons.

First, a single incident of this nature does not plausibly allege conduct sufficiently severe or pervasive so as to alter the conditions of Ms. Sequeira’s employment. (*Nazir, supra*, 178 Cal.App.4th at 263.)

Second, the incident arose in the context of an investigation into Ms. Sequeira’s motor vehicle accident, not because of her sex or other protected characteristic. Harassment must be based on the plaintiff’s membership in protected class to be actionable under FEHA. (*Thompson, supra*, 186 Cal.App.4th at 876.)

The harassment claim against Mr. England as to Ms. Sequeira therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Sequeira is **SUSTAINED WITH LEAVE TO AMEND**.

Ms. Woody

1. Bisa French

Ms. Woody alleges that Chief French assured her she would be protected from retaliation following her April 2024 complaint, then promoted Mr. England despite the pending allegations against him. (Compl. at 17:21-25.) The promotion of Mr. England is a personnel management decision that cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.) Chief French’s assurance of protection from retaliation describes a communication in response to Ms. Woody’s complaint, and not affirmative harassing conduct directed at Ms.

Woody.

The harassment claim against Chief French as to Ms. Woody therefore fails.

2. Enrik Melgoza

The Complaint does not allege any conduct by Mr. Melgoza directed at Ms. Woody. The harassment claim against Mr. Melgoza as to Ms. Woody therefore fails.

3. Miguel Castillo

The Complaint's allegations against Mr. Castillo as to Ms. Woody consist of a single conclusory paragraph alleging that he singled her out for unwarranted criticism and other adverse employment actions, without identifying any specific incident, date, or conduct, merely alleging "hostility toward any women who dared to question his authority." (Compl. at 16:26-28.) Such a conclusory allegation cannot, as a matter of law, establish the severe or pervasive pattern required to state a harassment claim. (*Nazir, supra*, 178 Cal.App.4th at 263.)

The harassment claim against Mr. Castillo as to Ms. Woody therefore fails.

4. Joseph England

Ms. Woody alleges that Mr. England approached her at the accident scene on April 23, 2024, instructed her to exit Ms. Sequeira's vehicle in a stern tone, ordered her to stand behind the vehicle, and subsequently threatened to "call her in" before ordering her to leave. (See *ante* "Administrative Leave and Accident Scene.") As discussed with regard to Ms. Sequeira's claims, this single incident does not plausibly allege conduct sufficiently severe to alter the conditions of Ms. Woody's employment and arose in the context of an investigation into Ms. Sequeira's motor vehicle accident rather than because of Ms. Woody's sex or other protected characteristic. (*Thompson, supra*, 186 Cal.App.4th at 876; *Nazir, supra*, 178 Cal.App.4th at 263.)

The harassment claim against Mr. England as to Ms. Woody therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Woody is **SUSTAINED WITH LEAVE TO AMEND**.

B. Intentional Infliction of Emotional Distress ("IIED")

Government Claims Act

Under the Government Claims Act, "failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.; Gov. Code, §§ 911.2, 945.4.) "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement. Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*State of California v. Superior Court, supra*, 32 Cal.4th at 1243.)

Here, the Complaint fails to allege that any plaintiff presented a claim to the City of Richmond prior to filing suit nor that they were excused from doing so.

Plaintiffs argue that the exemption for public employee wage and salary claims under Government Code section 905(c) relieves them of this obligation.

(OPPOSITION TO INDIVIDUAL DEFENDANTS DEMURRER TO PLAINTIFFS' COMPLAINT ("Indiv. Oppo.") at 15:20-28.) That exemption, by its plain terms, applies only to claims for fees, salaries, wages, mileage, or other expenses and allowances, and does not extend to a claim for emotional distress damages. (Gov. Code, § 905(c).)

Merits

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

[I]t is "not... enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that

his conduct has been characterized by ‘malice,’ or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.”

(*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496, quoting Rest.2d Torts, § 46, com. d, p. 73.)

Even setting aside the threshold deficiencies, Plaintiffs’ IIED claim fails on the merits. The conduct alleged against the Individual Defendants consists of personnel management decisions, supervisory criticism, a single rude phone call, an accident scene encounter where Ms. Sequeira and Ms. Woody were allegedly unlawfully detained, and a failure to take remedial action; these do not rise to the level of extreme and outrageous conduct exceeding all bounds of decency tolerated in a civilized community that is required to state a claim for IIED.

Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.

(*Janken, supra*, 46 Cal.App.4th at 80.)

The demurrer to the eighth cause of action for IIED against all Individual Defendants as to all Plaintiffs is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

For the foregoing reasons, the Individual Defendants’ demurrer to the fourth cause of action for harassment and to the eighth cause of action for intentional infliction of emotional distress is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

9. 9:00 AM CASE NUMBER: C25-02606

CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is Defendants City of Richmond (“the City”) and Richmond Police Department’s (“RPD”) (collectively “Defendants”) demurrer. The demurrer relates to Plaintiffs Jameiz Terrell, Michelle Sequeira, and Alayna Woody’s (collectively “Plaintiffs”) Complaint for (1) Sex Discrimination [all Plaintiffs against the City and RPD]; (2) Race Discrimination [Ms. Terrell against the City and RPD]; (3) Sexual Orientation Discrimination [Ms. Terrell against the City and RPD]; (4) Harassment [all Plaintiffs against all Defendants]; (5) Retaliation [all Plaintiffs against the City and RPD]; (6) Failure to Prevent Discrimination and Harassment [all Plaintiffs against the City and RPD]; (7) Violation of Labor Code sections 233, 234, and 246.5 [Ms. Terrell against the City and RPD]; and (8) Intentional Infliction of Emotional Distress [all Plaintiffs against Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England].

Defendants demur to the first through seventh causes of action pursuant to Code of Civil Procedure section 430.10. As to the first through sixth causes of action, Defendants contend that (1) each fails to allege facts sufficient to constitute a cause of action (Code Civ. Proc., § 430.10(e)) and (2) the allegations render each claim uncertain and unintelligible (Code Civ. Proc., § 430.10(f)). As to the seventh cause of action for violation of Labor Code sections 233, 234, 246.5, Defendants contend that the claim fails because Ms. Terrell failed to exhaust her administrative remedies by filing a claim with the City as required by the Government Claims Act, and because the allegations render the claim uncertain and unintelligible (Code Civ. Proc., § 430.10(f)).

Plaintiffs oppose Defendants’ demurrer on the grounds that it improperly attempts to resolve factual disputes and impose evidentiary burdens beyond California’s liberal pleading requirements. Plaintiffs contend that each plaintiff’s allegations, taken as a whole, establish circumstantial evidence of

discriminatory motive and a pattern of sex-based hostile treatment sufficient to state claims for discrimination, harassment, and retaliation. Plaintiffs further contend that the Government Claims Act's limitation on suits for money or damages does not bar equitable relief expressly authorized by the Labor Code statutes at issue.

For the following reasons, Defendants' demurrer to Plaintiffs' Complaint is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all applicable Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

I. Factual Allegations and Background

This suit arises out of an employment dispute between current and former police officers with the Richmond Police Department ("RPD"). (Complaint ("Compl.") at 2:2-4.)

a. Jameiz Terrell

i. Background and Performance History

Ms. Terrell, a Black, lesbian woman, graduated from the Napa Valley Police Academy in 2015. (Compl. at 4:17-18; 6:26-28.) On July 11, 2015, she was hired by RPD, and in December of that year she completed her training and became a sworn peace officer. (*Ibid.*) In April 2019, Ms. Terrell became a Gang Unit Detective and SWAT Team Operator. (*Id.* at 7:4-6.) She became a member of the Tactical Response Team on January 6, 2020. (*Ibid.*) From 2019 to 2023 she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearms. (*Id.* at 7:7-8.) Ms. Terrell was employed continuously by RPD until her alleged constructive termination on October 26, 2023. (*Id.* at 4:16-17; 6:28-7:1.)

While employed by RPD, Ms. Terrell completed approximately 75 certified training courses; in 2017 she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction of violence. (Compl. at 7:2-4.)

Ms. Terrell alleges that she was targeted and "experienced severe

discrimination, harassment, and retaliation” at the hands of supervisor Nathan Lonso. (Compl. at 7:14-15.) She alleges that he “singl[ed] her out for unwarranted scrutiny and attempt[ed] to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (*Id.* at 7:15-17.) Her Complaint does not elaborate on who the nonprotected colleagues were or what preferential treatment they received.

In April of 2020, Ms. Terrell alleges she and another officer filed a complaint against Mr. Lonso; the complaint prompted an Internal Affairs investigation, which led to Mr. Lonso’s termination. (Compl. at 7:17-19.) Ms. Terrell alleges that Mr. Lonso was ultimately reinstated by RPD. (*Ibid.*)

ii. Road Rage Incident

On October 17, 2020, Ms. Terrell was allegedly involved in an off-duty, road rage incident in Fairfield, California, with gang-related subjects wherein she alleges “she brandished her firearm in an attempt to defuse the situation.” (Compl. at 7:23-24.) The Fairfield Police Department investigated the incident and concluded no crime had occurred. (*Id.* at 7: 25-26.) Ms. Terrell alleges she followed department protocol by immediately reporting the incident to RPD. (*Id.* at 7:26.) Nearly a year later, on October 14, 2021, RPD proposed disciplining Ms. Terrell for the incident by placing her on a 10-hour suspension without pay and removing her from her Special Response Team assignment. (*Id.* at 7:27-28.)

A subsequent *Skelly* Hearing issued a finding on March 3, 2022, that, because Ms. Terrell had received “numerous awards and commendations for outstanding police work” even as recently as January of 2022, the proposed disciplinary action of removing Ms. Terrell from her Special Response Team assignment was “much too severe and [was] NOT SUSTAINED.” (Compl. at 7:28-8:9.) The *Skelly* officer also noted that while allegations of inequitable treatment had been raised, issues related to discrimination were outside the scope of the *Skelly* officer’s assignment, and the officer instead “urg[ed] the “Human Resources Department [to] conduct a thorough information.”” (*Id.* at 8:3-6.) Ms. Terrell alleges “on information and belief” that no human resources inquiry was undertaken into the discrimination issue flagged by the *Skelly*

officer. (*Id.* at 8:6-7.)

RPD opted to overrule the *Skelly* officer's findings and remove Ms. Terrell from her position on the Special Response Team anyway. (Compl. at 8:9.) On August 22, 2023, however, the department reversed course and agreed to adopt the *Skelly* officer's findings; accordingly, Ms. Terrell was placed back on her Special Response Team assignment. (*Id.* at 8:8-12.)

iii. Flying Armed

Ms. Terrell alleges that during an RPD wiretap investigation on which Ms. Terrell was working, communications were intercepted on August 19, 2021, that indicated that a suspect with whom Ms. Terrell had recent contact, would coincidentally be on the same aircraft as Ms. Terrell for an upcoming flight. (Compl. 8:15-18.) With the apparent blessing of ATF, Ms. Terrell opted to fly armed for her safety due to her recent contact with the suspect. (*Id.* at 8:18-20.) On August 9, 2022, RPD issued a summary reprimand regarding the incident, stemming from an anonymous complaint received by the department. (*Id.* at 8:20-22.) Ms. Terrell authored a rebuttal to the reprimand wherein she stated she believed the discipline was retaliation for her complaint about Mr. Lonso; Ms. Terrell alleges that RPD did not act on her report of the retaliation. (*Id.* at 8:22-23.)

iv. Alleged Pattern of Targeting by Castillo and Melgoza

Enrik Melgoza and Miguel Castillo are alleged to be close friends of Mr. Lonso's. (Compl. at 8:13-14.) At a December 14, 2022 arbitration hearing regarding Mr. Lonso's termination, Mr. Castillo testified as a character witness for Mr. Lonso. (*Id.* at 9:18-19.) Ms. Terrell alleges Mr. Castillo and Mr. Melgoza repeatedly targeted her during the course of her employment with RPD. (*Id.* at 8:13-15.)

v. Melgoza

On January 19, 2022, Ms. Terrell alleges Mr. Melgoza told her she would be switched to Beat 7. (Compl. at 8:24-28.) Ms. Terrell alleges that Mr. Melgoza's reasoning for the switch – that he believed another officer, who sued the department for discrimination, harassment, and retaliation, would not provide

Ms. Terrell proper cover during proactivity stops – was pretextual. (*Id.* at 8:24-28.) She alleges that “Beat 7 was known as the busiest beat in the city, where officers were placed when they were being punished.” (*Id.* at 8:27-28.) She also alleges that during the same period, “nonprotected officers with less seniority than Terrell received preferential treatment in the form of easier beats.” (*Id.* at 8:28-9:2.)

On January 2, 2023, Mr. Melgoza allegedly completed a Transfer Request endorsement declining to recommend Ms. Terrell for the position of Field Training Officer (“FTO”), citing excessive sick leave usage in 2022 and claiming that Ms. Terrell struggled with basic patrol functions and decision-making. (Compl. at 9:20-27.) Ms. Terrell alleges such performance issues had never previously been raised with her. (*Id.* at 9:25-26.) On January 9, 2023, Mr. Melgoza confirmed to Ms. Terrell that the sick leave usage was his reason for the denial. (*Id.* at 9:26-27.) It was only after the Richmond Police Officers Association (“RPOA”) complained on her behalf that Ms. Terrell was granted an interview for the FTO position. (*Id.* at 9:28-10:2.) A lengthy evaluation was subsequently added to her personnel file, which RPD Police Chief Bisa French later ordered removed. (*Id.* at 10:2-3.) Ms. Terrell alleges that RPD was ultimately required to modify its FTO endorsement process as a result of Mr. Melgoza’s conduct, though the Complaint does not elaborate on the nature of that modification. (*Id.* at 9:27-28.)

On March 13, 2023, Mr. Melgoza allegedly presented Ms. Terrell with her 2022 performance evaluation and directed her to sign and return it the same day. (Compl. at 10:4-5.) The evaluation criticized Ms. Terrell for excessive sick leave usage, comparing her usage to the purported team average and including approximately 40 hours of workers’ compensation-related medical leave in that figure. (*Id.* at 10:5-9.) The evaluation also referenced the 2021 flying-armed incident and, based on a purported random audit of Ms. Terrell’s body camera footage conducted by Castillo, criticized her for discussing her firearm with a civilian. (*Id.* at 10:10-15.) Ms. Terrell received a verbal warning based on the body camera finding. (*Id.* at 10:15.) Chief French determined that an Internal

Affairs investigation was unwarranted but allegedly advised Ms. Terrell that “they were ‘gunning’ for her.” (*Id.* at 10:16-17.) The Complaint does not clarify who specifically “they” is, however it does allege that nonprotected officers who used sick leave were not subject to comparable scrutiny. (*Id.* at 10:9-10, 16-17.)

On March 21, 2023, a meeting was allegedly held with Mr. Melgoza, Ms. Terrell, the RPOA President, and another officer regarding Ms. Terrell’s performance evaluation. (Compl. at 10:18-19.) Mr. Melgoza agreed to revise certain sections, including the sick leave discussion, but failed to do so. (*Id.* at 10:20-22.)

On June 5, 2023, Mr. Melgoza allegedly issued Ms. Terrell a negative comment card for responding to work emails while on sick leave. (Compl. at 10: 23-24.)

On September 21, 2023, Mr. Melgoza, as SWAT team leader, allegedly placed Ms. Terrell on rear security without explanation rather than in her usual position in the stacking order, replacing her with a nonprotected officer who had not attended SWAT school. (Compl. at 10: 25-27.)

vi. Castillo

On March 16, 2022, Mr. Castillo and Ms. Terrell allegedly responded to a child custody dispute. (Compl. at 9:3.) A lieutenant allegedly ordered the child to be left with the mother however Mr. Castillo went to the mother’s home and took the child, which prompted the mother to complain to the Richmond City Council. (*Id.* at 9:4-5.) An Internal Affairs investigation into Castillo’s conduct followed. (*Id.* at 9:6.) The investigating officer, then-sergeant Joseph England, allegedly concluded that Mr. Castillo was targeting Ms. Terrell. (*Id.* at 9:6-7.) The Complaint does not specify what conduct constituted the targeting, how the incident adversely affected Ms. Terrell, or what connection it bore to her protected status or activity.

On August 15, 2022, Mr. Castillo allegedly directed Ms. Terrell to respond as primary officer to a service call outside her beat while she was already on another call. (Compl. at 9:8-9.) Several days later, on August 18, 2022, Mr. Castillo allegedly telephoned Ms. Terrell demanding to know what report she

was writing and its case number, then hung up on her without further explanation. (*Id.* at 9:10-11.)

vii. Detective Selection

On November 9, 2022, the Office of the Chief of Police released new assignment selections and Ms. Terrell allegedly learned she had not been selected as a detective. (Compl. at 9:12-13.) When she sought to look at the selection paperwork to find out how she scored she discovered she was listed as “appointed” under the Domestic and Sexual Violence Unit. (*Id.* at 9:13-15.) Ms. Terrell allegedly followed up with Chief French’s secretary to inquire about the inconsistency and “the secretary replied that she thought Terrell had been selected and was uncertain what changed.” (*Id.* at 9:15-17.) The Complaint does not identify who made the final section decision or on what basis.

viii. Request for Reassignment

Ms. Terrell allegedly made four requests (February 1, 2022, November 8, 2022, March 23, 2023, and June 27, 2023) to Captain Matt Stonebreaker to be transferred from Team 2 to Team 1 to avoid supervision by Mr. Melgoza and Mr. Castillo. (Compl. at 11:2-6.) In her final request, Ms. Terrell noted that adverse incidents had continued since her prior requests; RPD denied all four requests. (*Id.* at 11:6-9.)

ix. Resignation

On October 23, 2023, Ms. Terrell submitted her resignation, effective October 26, 2023. (Compl. at 11:12.) During her exit interview, Chief French allegedly acknowledged that Mr. Castillo and Mr. Melgoza had been targeting Ms. Terrell and stated that Chief French had been unable to protect Ms. Terrell. (*Id.* at 11:13-15.) On her final day, Ms. Terrell allegedly reported to SWAT team training and was directed by Melgoza to report to desk duty instead. (*Id.* at 11:16-18.)

b. Michelle Sequeira

i. Background and Performance History

Ms. Sequeira, a woman, was hired by RPD as a police officer trainee on May 13,

2019. (Compl. at 11:22-23.) She became a sworn police officer and promoted to the rank of Police Officer on November 18, 2019. (*Id.* at 11:23-24.) Ms. Sequeira was employed continuously by RPD until her termination on July 3, 2025. (*Id.* at 11:26-27.)

Ms. Sequeira received a performance appraisal for the period of November 18, 2019, through November 18, 2020, with an overall rating of “Meets Expectations.” (Compl. at 12:6-8.) The appraisal noted that her report writing had progressively improved and her reports had become complete and concise. (*Id.* at 12:8-9.) She received a second appraisal for the period of November 18, 2020, through November 18, 2021, again rated “Meets Expectations.” (*Id.* at 12:10-12.) That appraisal noted that she had continuously improved her report writing and made an effort to seek assistance from more tenured officers. (*Id.* at 12:12-14.)

In March of 2024, Ms. Sequeira received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (Compl. at 12:1-3.) She also received commendations from the chiefs of police of Pittsburg and San Francisco in September and October of 2023. (*Id.* at 12:3-5.)

i. Motor Vehicle Accident

On June 17, 2022, while on patrol Ms. Sequeira was allegedly involved in a motor vehicle collision at the intersection of 34th Street and McBryde Avenue in Richmond. (Compl. at 12:15-16.) Ms. Sequeira, traveling on 34th Street, failed to yield to a vehicle traveling on McBryde Avenue. (*Id.* at 12:16-18.) In the aftermath of the collision, she allegedly believed she had stopped before proceeding through the intersection. (*Id.* at 12:18-19.)

i. Performance Improvement Plan

In or about November of 2022, Ms. Sequeira received her performance appraisal for the period of November 18, 2021, through November 18, 2022, which was rated “Meets Expectations.” (Compl. at 12:20-22.) Despite prior appraisals reflecting improvement in her report writing, the appraisal allegedly criticized her for struggling with timely report submission. (*Id.* at 12:22-24.) On

November 13, 2022, she was placed on a Performance Improvement Plan (“PIP”), citing spelling and grammatical errors, incomplete preliminary investigations, and delayed report submissions. (*Id.* at 12:24-26.) Ms. Sequeira alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 12:26-27.)

/. Letter of Instruction and Removal from Collateral Intelligence Unit

On December 26, 2022, Ms. Sequeira was allegedly assigned to Beat 8. (Compl. at 13:3.) While on that assignment, she failed to respond to a text message from Mr. Castillo because she was using the restroom and was unable to hear him on a radio call. (*Id.* at 13:4-6.) Mr. Castillo had allegedly been tracking Ms. Sequeira’s location via GPS, which Ms. Sequeira alleges was in violation of RPD policy. (*Id.* at 13:6-7.) Mr. Castillo criticized Ms. Sequeira for using the restroom at RPD’s dispatch building and directed her to use a gas station instead; she alleges this was “in marked contrast to the treatment of other officers.” (*Id.* at 13:7-9.) On January 18, 2023, Ms. Sequeira was issued a Letter of Instruction based on accusations that she failed to follow a lawful order from Mr. Castillo and was disrespectful and unprofessional. (*Id.* at 13:1-2.) She was subsequently removed from her assignment on the Collateral Intelligence Unit without being informed of the disciplinary action or offered union representation. (*Id.* at 13:9-11.)

/. Domestic Violence Call and Letter of Reprimand

On August 6, 2023, Ms. Sequeira allegedly responded to a domestic violence call and made contact with the male suspect. (Compl. at 13:15-16.) While gathering the suspect’s information, she was allegedly instructed by a sergeant to contact the victim instead. (*Id.* at 13:16-18.) To that end, she placed the suspect in the rear of her patrol car and contacted the victim. (*Id.* at 13:18-19.) She later returned to her patrol vehicle and found that the suspect had been taken by other officers to RPD for booking. (*Id.* at 13:19-20.) A citizen subsequently found the suspect’s wallet and returned it to the department. (*Id.* at 13:20.) When the suspect later contacted RPD claiming money was missing from his wallet, Ms. Sequeira was allegedly the only officer investigated in

relation to the incident. (*Id.* at 13:20-22.) On February 15, 2024, Ms. Sequeira received a Letter of Reprimand from Chief French, which alleged that Ms. Sequeira “improperly handled and cared for potential evidence or personal property belonging to another person, ultimately losing a wallet that contained personal identification and \$1,320 in cash.” (*Id.* at 13:22-25.)

i. Administrative Leave and Accident Scene Incident

On or about April 16, 2024, Chief French allegedly learned of the existence of a citizen’s security camera that captured Ms. Sequeira’s June 17, 2022, motor vehicle collision. (Compl. at 13:26-27.) The video from the incident showed that Ms. Sequeira “failed to come to a complete stop before proceeding through the intersection.” (*Id.* at 13:27-28.) Allegedly, based on the new evidence, Ms. Sequeira was placed on administrative leave on April 18, 2024, pending the outcome of an investigation. (*Id.* at 13:28-14:2.) The notice of administrative leave Ms. Sequeira received did not disclose the basis for the investigation and it was not until April 23, 2024, that she learned that it related to the 2022 motor vehicle collision. (*Id.* at 14:2-6.)

Upon learning the nature of the investigation and administrative leave, Ms. Sequeira allegedly met fellow-police officer and plaintiff Alayna Woody at the accident scene at 34th Street and McBryde Avenue on April 23, 2024, so Ms. Sequeira could reconstruct the accident and refresh her recollection of it. (Compl. at 14:5-9; 17:1-2.) Both officers were off duty. (*Id.* at 17:3-4.) Ms. Sequeira’s personal vehicle was lawfully parked on the public street, and the two officers walked the four corners of the intersection. (*Id.* at 14:9-11; 17:3-4.)

Then, as Ms. Sequeira and Ms. Woody sat in Ms. Sequeira’s parked vehicle, a black unmarked Ford Explorer patrol vehicle allegedly approached and parked facing the wrong direction on the street, nose-to-nose approximately two feet from Ms. Sequeira’s vehicle, restricting her ability to move. (Compl. at 14:11-13; 17:4-6.) The Ford Explorer carried the Internal Affairs Investigator Mr. England and RPD’s Manager of the Office of Professional Accountability, Eddie Aubrey. (*Id.* at 14:11-13.)

Mr. England allegedly instructed Ms. Woody to exit the vehicle in a stern tone and ordered her to stand behind it – a position Ms. Woody recognized, based on her training and experience, as where officers place persons being detained during a traffic enforcement stop. (Compl. at 17:6-9.) Mr. England and Mr. Aubrey then questioned Ms. Sequeira while she remained seated in the vehicle, with Mr. England acting as cover officer. (*Id.* at 17:9-11.)

Mr. England and Mr. Aubrey subsequently instructed Ms. Woody to leave the area, threatening to “call [her] in.” (Compl. at 17:11-12.) Ms. Woody, fearful of further adverse employment action, complied and drove away. (*Id.* at 17:12-14.) Ms. Sequeira alleges she, too, was threatened by Mr. England and Mr. Aubrey, although she does not elaborate on what threats were made against her specifically. (*Id.* at 14:15-16.) Plaintiffs both allege the encounter constituted an unlawful detention. (*Id.* at 14:13-15.)

Ms. Woody subsequently filed a complaint against Mr. England and Mr. Aubrey based on this incident, discussed at greater length *infra*, and Mr. England and Mr. Aubrey were removed from the investigation into Ms. Sequeira’s motor vehicle collision. (Compl. at 14:18-20.) RPD hired Karen Kramer from Kramer Workplace Investigations to take over the investigation into Ms. Sequeira’s motor vehicle collision. (*Id.* at 14:20-22.) Kramer Workplace Investigations is allegedly “a long-time public sector investigator, particularly in law enforcement investigations,” and thus, according to Plaintiffs’ Complaint, “hardly an independent and unbiased investigator.” (*Id.* at 14:20-22.)

In December of 2024, while still on administrative leave, Ms. Sequeira received a performance appraisal for the period of November 18, 2023, to November 18, 2024. (Compl. at 14:23-26.) Her overall rating was “Meets Expectations” although the appraisal was limited in nature because she was on administrative leave for most of the rating period. (*Id.* at 14:24-26.)

i. Termination

On February 6, 2025, Ms. Sequeira received a Notice of Intent to Terminate from Chief French. (Compl. at 14:27.) The notice stated that Ms. Sequeira

“falsely claimed on multiple occasions – under oath and under penalty of perjury – that [she] stopped at the stop sign prior to hitting [the other] vehicle on June 17, 2022.” (*Id.* at 14:28-15:1.) The notice also included the allegation that Ms. Sequeira engaged in “deceitful misconduct.” (*Id.* at 15:2.)

A *Skelly* hearing was convened and Richmond Fire Chief Aaron Osorio, who served as *Skelly* officer, sustained the proposed discipline. (Compl. at 15:4-5.) Ms. Sequeira alleges that Chief Osorio’s finding stemmed from a “clear conflict of interest,” however she does not elaborate on the basis of the conflict. (*Id.* at 15:5-6.)

On July 3, 2025, Ms. Sequeira was terminated. (Compl. at 15:7.) The Notice of Final Discipline again stated that Ms. Sequeira had falsely claimed on multiple occasions, under oath and under penalty of perjury, that she stopped at the stop sign before the June 17, 2022 collision, and again characterized her conduct as “deceitful misconduct.” (*Id.* at 15:8-15.) Ms. Sequeira alleges she genuinely believed she had stopped and the characterization of her conduct as deliberate dishonesty is without support. (*Id.* at 15:10-15.)

Ms. Sequeira alleges that the Notice of Final Discipline also included additional accusations she characterizes as false and misleading, including a reference to an unrelated minor traffic collision on August 6, 2021, and the December 26, 2022 incident with Mr. Castillo where RPD alleged she was “disrespectful and unprofessional” for what she describes as “protesting her mistreatment by defendant Castillo.” (Compl. at 15:21-28.) She alleges that these additional accusations illustrate Defendants’ disparate treatment of female officers in that male officers allegedly engaged in serious misconduct with little or no consequences during the same period. (*Id.* at 15:16-20.) Plaintiffs’ Complaint does not identify any specific male officers or describe the nature of their alleged misconduct apart from describing the conduct as “serious civil rights violations.” (*Ibid.*)

On August 11, 2025, the Commission on Peace Officer Standards and Training (“POST”) notified Ms. Sequeira that it had closed its case against her for

dishonesty without further action, citing a lack of sufficient evidence to substantiate the alleged conduct by clear and convincing evidence or a determination that the conduct did not warrant decertification or suspension. (Compl. At 16:2-9.)

Ms. Sequeira filed a complaint with the CRD on September 10, 2025, and sought and received an immediate right-to-sue letter. (Compl. at 4:5-8, Exhibit B.)

c. Alayna Woody

i. Background and Performance History

Ms. Woody, a woman, was hired as a Police Officer Trainee (“PTO”) by RPD on May 13, 2019, and became a sworn peace officer promoted to the rank of Police Officer on November 18, 2019. (Compl. at 16:14-16.) She was released from the PTO program to solo beat patrol May 31, 2020. (*Id.* at 16:16-17.)

Ms. Woody received numerous commendations during her tenure with RPD. (Compl. at 16:18-25.) On March 5, 2021, she was praised for her patience and professionalism in handling a call involving a mentally unstable and combative person. (*Id.* at 16:18-20.) On April 18, 2021, she received a summary commendation for conducting 112 vehicle enforcement stops resulting in five firearm-related arrests. (*Id.* at 16:20-22.) She received additional commendations on December 9, 2022, October 19, 2023, and March 22, 2024. (*Id.* at 16:22-23.) In March 2024 she also received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (*Id.* at 16:23-25.)

i. Alleged Pattern of Targeting by Castillo

Ms. Woody alleges that, like Ms. Terrell and Ms. Sequeira, she experienced problems with Mr. Castillo, who singled her out for unwarranted criticism and other adverse employment actions. (Compl. at 16:26-28.) The Complaint does not identify any specific incidents, dates, or conduct attributable to Mr. Castillo with respect to Ms. Woody apart from the vague allegation that Mr. Castillo “express[ed] hostility toward any women who dared to question his authority.” (*Ibid.*)

i. Complaint About England and Aubrey Accident Scene Incident

On April 23, 2024, Ms. Woody accompanied Ms. Sequeira to the accident scene at 34th Street and McBryde Avenue where she alleges she was illegally detained by Mr. England and Mr. Aubrey. (see *ante*, “Administrative Leave and Accident Scene Incident.”) On or about April 25, 2024, Ms. Woody filed a complaint against Mr. England and Mr. Aubrey regarding the encounter. (Compl. at 17:14-15.) In her complaint, Ms. Woody wrote:

I no longer feel as safe and question my safety and the rights I have in my place of employment. I also have lost faith and trust in the department’s [Internal Affairs] process and ultimately the chief who they report to. ... I have serious concerns over how my future treatment in the department will be, retaliation for filing this complaint, for what transpired and for my own emotional, physical, and mental health. This was a shameful exercise of the department’s power and needs to be addressed immediately.

(Compl. at 17:14-20.)

Shortly thereafter, Chief French met with Ms. Woody; the chief characterized Ms. Woody’s allegations as serious and assured her she would be protected from retaliation. (Compl. at 17:21-22.) Chief French subsequently promoted Mr. England from sergeant to lieutenant. (*Id.* at 9:7; 17:23-24.) Ms. Woody alleges that, in contrast to the treatment of other officers (though she does not identify any other officers or a specific policy), Mr. England was not placed on desk duty during the investigation of her complaint. (*Id.* at 17:24-25.)

Chief French assigned investigation into Ms. Woody’s complaint to Karen Kramer of Kramer Workplace Investigations – the same investigator concurrently investigating the accusations against Ms. Sequeira. (Compl. 14:20-22; 17:26-28.) Although video of Ms. Sequeira’s accident at the same intersection was located from years earlier, Defendants represented that no

video of the alleged unlawful detention existed. (*Id.* at 18:1-2.) Ms. Woody alleges “on information and belief” that Mr. England deliberately concealed the video to cover up his misconduct. (*Id.* at 18:2-3.) She alleges no factual basis for her information and belief.

On January 15, 2025, RPD issued a memorandum to Ms. Woody notifying her that Kramer did not sustain her complaint that Mr. England and Mr. Aubrey had unlawfully detained her. (Compl. at 18:4-5.) Ms. Woody alleges that Kramer’s investigation was “incompetent and corrupt.” (*Id.* at 18:19-20.)

/. Letters of Instruction

On December 30, 2023, and September 20, 2024, Ms. Woody received what she alleges were “unwarranted” Letters of Instruction, a form of written warning, for her report preparation. (Compl. at 18:22-23.) She alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 18:21-24.) Notably, Ms. Woody’s performance appraisals for the period of November 2023 through November 2024 reflected that she consistently delivered exemplary performance and that her written reports were precise, well-structured, and submitted promptly. (*Id.* at 18:25-28.) The Complaint does not identify who issued the Letters of Instruction or attempt to explain the discrepancy between the written warnings and contemporaneous performance appraisal.

II. Procedural Background

Ms. Terrell filed a complaint with the California Civil Rights Department (“CRD”) on September 20, 2024, and sought and received an immediate right-to-sue letter. (Compl. at Exhibit A.) Ms. Sequeira and Ms. Woody filed their own complaints with the CRD on September 10, 2025, and sought and received immediate right-to-sue letters. (Compl. at 4:5-8, Exhibit B, Exhibit C.)

The judicial complaint in this action was filed September 11, 2025. The City of Richmond and RPD filed the instant demurrer to challenge the claims against them in this action on November 24, 2025; the individual defendants in this case – Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England –

collectively filed their own demurrer on January 9, 2026, which is heard concurrently with this motion.

III. Meet-and-Confer Efforts

Before a responding party files a demurrer, the parties shall meet and confer at least five days prior to the date the responsive pleading is due, in person, by telephone, or by videoconference. (Code Civ. Proc., § 430.41(a)(2).) Here, the responsive pleading was initially due October 17, 2025, however Defendants' counsel Nicholas Grether requested and received three extensions from Plaintiff's counsel, Robert Schwartz, ultimately making the responsive pleading due November 24, 2025. (Grether Declaration ("Grether Dec.") ¶¶ 4, 6, 7.) This made the statutory meet-and-confer deadline November 19, 2025. (*Id.* ¶ 9; Code Civ. Proc., § 430.41(a)(2).) On November 12, Mr. Grether emailed Mr. Schwartz about setting up a time to meet and confer on the grounds for Defendants' demurrer, however Mr. Schwartz did not reply to the email until November 20, 2025, one day after the statutory deadline to meet and confer had passed. (Grether Dec. ¶¶ 8-10.) Ultimately, the parties were able to meet and confer telephonically on November 21, 2025, however the disputes were not resolved, and this demurrer followed on November 24, 2025. (*Id.* ¶¶ 11-12.)

The Court is satisfied that Defendants met their statutory burden under California Code of Civil Procedure section 430.41.

IV. Legal Standard

"A demurrer tests the sufficiency of the complaint by raising questions of law." (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

“Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) “[A] pleading that [does] no more than assert boilerplate allegations [however]...would not be sufficient nor would allegations of information and belief that merely asserted the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5; see also *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.) Regardless of whether a Plaintiff has requested leave to amend, it is an abuse of discretion to sustain a demurrer to an initial complaint without leave to amend unless the complaint shows on its face that it is incapable of amendment. (*Cabral v. Soares* (2007) 157 Cal.App.4th 1234, 1240; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 411.)

V. Analysis

a. Ms. Terrell

i. Discrimination (Sex, Race, and Sexual Orientation)

California’s Fair Employment and Housing Act (“FEHA”) holds that it is an unlawful employment practice to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or

privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a).)

To state a claim for discrimination, a plaintiff must show (1) she was a member of a protected class, (2) she was performing competently in the position she held, (3) she suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.) The plaintiff must also produce evidence sufficient to show that discrimination was a substantial motivating factor in the adverse employment action. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 232.)

In her complaint, a plaintiff must plead the essential facts of the case with particularity sufficient to acquaint a defendant with the nature, source and extent of the FEHA cause of action. (*Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 382.)

Ms. Terrell is a woman, she is Black, and she is a lesbian, thus she is a member of protected classes. (Compl. at 19:13-14; 20:24-25; 22:2-3.)

Ms. Terrell alleges she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction of violence. (Compl. at 7:2-4.) She also alleges she was promoted to Gang Unit Detective and SWAT Team Operator in April 2019; she became a member of the Tactical Response Team January 6, 2020; and she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearm. (*Id.* at 7:4-8.) She adequately alleges competent performance.

Ms. Terrell alleges a host of adverse employment actions, including allegedly unwarranted discipline, assignment to less-preferred duty, being passed over for detective assignment, and more. (Compl. at 7:23-28; 8:15-22; 8:24-9:2; 9:20-10:3; 10:5-17; 10:25-27; 9:12-13.)

Ms. Terrell fails, however, to allege a nexus between the adverse employment actions and her sex, race, or sexual orientation, much less that any was a substantial motivating factor in those actions. Indeed, her own allegations belie

this conclusory claim; she explicitly alleges that “[b]ecause of her complaint against Lonso, Terrell faced swift and blatant retaliation.” (Compl. at 7:20-21.) She then goes on to describe a pattern of targeting by Mr. Castillo and Mr. Melgoza, whom she identifies as “close friends of Lonso.” She also describes her contemporaneous rebuttal to the flying-armed reprimand as stating that ““this discipline is retaliatory in nature for [her earlier complaint against Lonso].”” (*Id.* at 8:13-15; 22-23.) Her allegations consistently and repeatedly attribute the adverse employment actions taken against her to personal retaliation for the complaint lodged against Mr. Lonso, not to her sex, race, or sexual orientation.

While the Complaint includes two passing and vague references to comparators – one to “nonprotected officers with less seniority” receiving easier beats (Compl. at 9:1-2) and another to Ms. Terrell being “replaced [in the stacking order] with a nonprotected officer who had not even attended SWAT school” (*Id.* at 10:27) – neither allegation identifies any specific comparator, describes the circumstances of their treatment, or alleges any connection to Ms. Terrell’s protected statuses. Such conclusory comparator allegations are insufficient to support an inference of discriminatory motive. (*Doheny Park Terrace Homeowners Assn., Inc., supra*, 132 Cal.App.4th at 1099.)

The demurrer to the first, second, and third causes of action for Discrimination on the basis of sex, race, and sexual orientation, is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

i. Harassment

It is a violation of FEHA for an employer to engage in or permit harassment of an employee in the workplace. (Gov. Code § 12940(j)(1).)

California Jury Instructions No. 2521a describes the essential factual elements that a plaintiff must allege to state a claim for harassment: (1) that Plaintiff was an employee of Defendant’s; (2) that she was subjected to unwanted harassing conduct because of protected characteristic or combination of characteristics; (3) that the harassing conduct was severe or pervasive; (4) that a reasonable person in Plaintiff’s circumstances would have considered the work

environment to be hostile or abusive; (5) that Plaintiff considered the work environment to be hostile or abusive; (6) that a supervisor engaged in the conduct, or that Defendant's supervisors or agents knew or should have known of the conduct, and failed to take immediate and appropriate corrective action; (7) that Plaintiff was harmed; and (8) that the conduct was a substantial factor in causing Plaintiff's harm.

Discrimination and harassment are in separate categories under FEHA; "discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace." (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer's business or performance of the supervisory employee's job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Here, virtually all the conduct alleged against RPD supervisors falls squarely within the category of personnel management: Ms. Terrell's transfer to Beat 7, the FTO denial, the performance evaluation, the negative comment card, the SWAT reassignment, the decision not to select Ms. Terrell for detective, the denial of her transfer requests, and Mr. Castillo's audit of her bodycam footage. (See *ante*, "Alleged Pattern of Targeting by Castillo and Melgoza.") Such decisions, even if improperly motivated, sound in discrimination rather than harassment and cannot form the basis for hostile work environment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.)

The conduct alleged against Chief French is equally unavailing. Ms. Terrell alleges that Chief French told her that supervisors were "gunning" for her but took no remedial action, and that during Ms. Terrell's exit interview, Chief French acknowledged the targeting but stated that she was unable to protect Ms. Terrell. (Compl. at 10:16-17; 11:13-15.) These allegations describe inaction

and a failure to intervene, not harassing conduct directed at Ms. Terrell.

Furthermore, even assuming *arguendo* that the Court were to find any of the above conduct qualified as harassment, as noted *ante*, Ms. Terrell fails to demonstrate a nexus between the conduct and any of her protected statuses. The Court reiterates that, Ms. Terrell's own allegations belie the claim that she experienced any of the alleged conduct as a result of her protected classes; she explicitly alleges that "[b]ecause of her complaint against Lonso, Terrell faced swift and blatant retaliation." (Compl. at 7:20-21.) Her allegations consistently and repeatedly attribute the actions taken against her to personal retaliation for the complaint lodged against Mr. Lonso, not to her sex, race, or sexual orientation.

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to "take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940(k). "Prompt investigation of a discrimination claim is a necessary step by which an employer meets its obligation to ensure a discrimination-free work environment." (*Northrop Grumman Corp. v. Workers' Comp. Appeals Bd.* (2002) 103 Cal.App.4th 1021, 1035.)

FEHA claims for failure to prevent discrimination and harassment are derivative; if the employee has not established discrimination or harassment, the failure-to-prevent claim necessarily fails. (*Carter v. California Dept. of Veterans Affairs* (2006) 38 Cal.4th 914, 925, fn. 4; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289; *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1309.)

Here, the Court finds that Ms. Terrell fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination

and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

7. Retaliation

FEHA prohibits an employer from discharging or otherwise discriminating against any employee because the employee opposed any practices forbidden under FEHA or because the person filed a complaint, testified, or assisted in any proceeding under FEHA. (Gov. Code § 12940(h).) An employee's conduct also constitutes protected activity for purposes of the anti-retaliation provision of FEHA when the employee opposes conduct that the employee reasonably believes to be discriminatory. (Gov. Code. § 12940(h); *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

To state a claim for retaliation under FEHA, a plaintiff must allege (1) she engaged in protected activity, (2) she was subjected to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.)

The determination as to what constitutes a protected activity is inherently fact driven. (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652 (superseded by statute on other grounds).) The causal link may be established by an inference derived from circumstantial evidence. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.) Evidence that the employer was aware that the plaintiff had engaged in the protected activity and that the adverse employment action followed within a relatively short time thereafter supports an inference that the action was retaliatory and is central to finding a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69-70; *Rope, supra*, 220 Cal.App.4th at 653; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 615 (superseded by statute on other grounds).)

In the retaliation context, an adverse employment action is one "that materially affects the terms, conditions, or privileges of employment." (*Yanowitz, supra*, 36 Cal.4th at 1051.)

Here, Ms. Terrell alleges she "experienced severe discrimination, harassment,

and retaliation from her supervisor, Mr. Lonso. He targeted Terrell, singling her out for unwarranted scrutiny and attempting to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (Compl. at 7:14-17.) In April 2020, she and another officer filed a complaint with the department against Mr. Lonso. (*Id.* at 7:17-19.) Ms. Terrell adequately alleges she engaged in protected conduct.

Ms. Terrell also adequately alleges adverse employment actions as discussed *ante*. (Compl. at 7:23-28; 8:15-22; 8:24-9:2; 9:20-10:3; 10:5-17; 10:25-27; 9:12-13.)

Ms. Terrell fails, however, to allege facts sufficient to support an inference of causal connection. In October of 2021, RPD proposed discipline in connection with an off-duty road rage incident in the form of an unpaid 10-hour suspension and removal from Ms. Terrell’s assignment on the Special Response Team. Ms. Terrell’s protected activity (the April 2020 complaint against Mr. Lonso) predated this first alleged adverse employment action by approximately 18 months (Compl. at 7:21-28.) Temporal proximity alone cannot establish causation where the gap between the protected activity and the adverse action is this substantial. (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243-244; *Clark County Sch. Dist. v. Breeden* (2001) 532 U.S. 268, 273-274 [A 20-month gap between protected activity and an adverse employment action “suggest[ed], by itself, no causality at all.”])

The next adverse action, a reprimand given in August of 2022 for flying armed a year earlier, prompted Ms. Terrell to write a letter in rebuttal wherein she stated that she believed “this discipline is retaliatory in nature for [her earlier complaint against Lonso].” (Compl. at 8:15-23.) While this allegation reflects Ms. Terrell’s subjective belief, it does not supply the missing causal link. A plaintiff’s own characterization of conduct as retaliatory, without supporting facts is the kind of conclusory allegation that does not survive on demurrer. (*Blank, supra*, 39 Cal.3d at 318; *Doe, supra*, 42 Cal.4th 531, 551, fn. 5.) Moreover, the reprimand itself came some 28 months after the protected activity and stemmed from an anonymous complaint about an incident that

itself occurred in August 2021 – still 16 months removed from the protected activity. The substantial temporal gap between the adverse action and the protected activity remains a significant barrier to causality. (*Le Mere, supra*, 35 Cal.App.5th at 243-244; *Clark County Sch. Dist., supra*, 532 U.S. at 273-274.)

The subsequent adverse actions – the Beat 7 transfer in January 2022, being passed over for detective in November 2022, FTO denial in January 2023, the negative performance evaluation and bodycam audit in March 2023, the negative comment card in June 2023, the SWAT reassignment in September 2023, and the constructive termination in October 2023 – are even further removed from the April 2020 complaint. Causation may be shown circumstantially, including by temporal proximity or by a pattern of antagonism following protected activity, but Ms. Terrell alleges no facts bridging this gap. (*Yanowitz, supra*, 36 Cal.4th at 1046; *Morgan, supra*, 88 Cal.App.4th at 69.) She alleges no expressions of retaliatory intent by any defendant in the intervening period, no period of escalating hostility immediately following the complaint, and no other circumstances connecting the April 2020 complaint to the adverse actions that followed a year-and-a-half later and beyond.

The Complaint's assertion that Mr. Castillo and Mr. Melgoza were close friends of Mr. Lonso is the only offered explanation for why they targeted Ms. Terrell. (Compl. at 8:13-15.) But friendship with the subject of a prior complaint does not, without more, establish that adverse actions taken 18 months or more later were causally linked to the complaint. (*Le Mere, supra*, 35 Cal.App.5th at 243-244.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

/. Violation of Labor Code sections 233, 234, 246.5

An employer is prohibited from denying an employee the right to use sick leave or discharging, threatening to discharge, demoting, suspending, or in any manner discriminating against an employee for using, or attempting to exercise the right to use, sick leave for the diagnosis, care, or treatment of an existing

health condition of, or preventive care for, an employee or an employee's family member. (Lab. Code, §§ 233(a), 246.5(a)(1).)

There is a "rebuttable presumption of unlawful retaliation if an employer denies an employee the right to use accrued sick days, discharges, threatens to discharge, demotes, suspends, or in any manner discriminates against an employee within 30 days of opposition by an employee to a policy, practice, or act" that is prohibited under Labor Code section 246.5. (Lab. Code, § 246.5(c)(2).)

"An employer absence control policy that counts sick leave taken pursuant to Section 233 as an absence that may lead to or result in discipline, discharge, demotion, or suspension is a per se violation of Section 233. An employee working under this policy is entitled to appropriate legal and equitable relief pursuant to Section 233." (Lab. Code, § 234.)

Here, Ms. Terrell alleges that Mr. Melgoza penalized her for her sick leave usage by citing it as the basis for denying her FTO endorsement and criticizing her in her performance evaluation based on her use of sick leave. (Compl. at 9:20-28, 10:4-9.)

Under the Government Claims Act ("GCA"), a party pursuing a claim against a public entity must present a written claim for damages to the public entity no later than six months after the accrual of the cause of action. (Gov. Code, § 911.2(a).) Failure to do so bars any subsequent suit for money damages. (Gov. Code, § 945.4.) Where GCA compliance is required, "failure to allege compliance or circumstances excusing compliance with the claim presentation requirement subjects a complaint to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1245.)

As to Labor Code section 233, the statute expressly authorizes a private civil action and provides for both damages and equitable relief, including reinstatement. (Lab. Code, § 233(d)-(e).) The GCA presentment requirement applies to the damages component of this claim, however.

Here, the Complaint contains no allegation that Ms. Terrell presented a claim to the City or RPD prior to filing the suit. (See generally Compl.) Accordingly, because the Complaint fails to allege GCA compliance, the demurrer to the section 233 claim is **SUSTAINED WITH LEAVE TO AMEND**. Ms. Terrell may replead this claim provided she expressly alleges GCA compliance as to any claim for money damages, or limits her claim to equitable relief only.

As to Labor Code sections 234 and 246.5, the remedial framework is set forth in Labor Code section 248.5, which vests enforcement authority in the Labor Commissioner and the Attorney General. (Lab. Code, § 248.5(a), (e).) Unlike Labor Code section 233, neither Labor Code section 234 nor 246.5 contains an express right to private action. The proviso in subdivision (e) limiting persons enforcing the article “on behalf of the public” to equitable, injunctive, or restitutionary relief does not supply a private right of action for an individual employee; rather it restricts the remedies available to public enforcement plaintiffs such as PAGA representatives, and does not speak to individual civil suits by aggrieved employees acting on their own behalf. To the extent that Ms. Terrell seeks to bring a direct civil action under these provisions, the Complaint does not allege a basis for doing so. The demurrer to Labor Code sections 234 and 246.5 claims is therefore **SUSTAINED WITH LEAVE TO AMEND** to allege, if she can, a basis for a private right of action under those statutes.

b. Ms. Sequeira

i. Discrimination (Sex)

It is an unlawful employment practice under FEHA to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a); see legal standard *ante* at section (V)(a)(i) “Discrimination (Sex, Race, and Sexual Orientation).”)

Here, Ms. Sequeira is a member of a protected class as she is a woman. (Compl. at 19:13-14.)

Ms. Sequeira alleges a series of performance appraisals with overall ratings of

“Meets Expectations” from November 2019 through November 2022, commendations from multiple law enforcement agencies, and a Bureau Commendation in March 2024. (Compl. at 12:1-14; 20-22.) Ms. Sequeira adequately alleges competent performance for the period prior to the adverse actions at issue.

Ms. Sequeira alleges multiple adverse employment actions, including placement on a Performance Improvement Plan (“PIP”) in November 2022, a letter of instruction and removal from the Collateral Intelligence Unit in January 2023, a Letter of Reprimand in February 2024, placement on administrative leave in April 2024, and ultimately termination in July 2025. (Compl. at 12:20-27; 13:1-11; 21-25; 13:28-14:2; 15:7.)

Ms. Sequeira fails, however, to allege facts connecting any of these adverse employment actions to her sex. Her sole comparator allegation, related to her November 2022 PIP for “struggl[ing] with turning in reports in a timely manner,” is unavailing. (Compl. at 12:20-27.) Her allegation that “[o]n information and belief, other nonprotected officers were not subject to the same treatment” is a bare conclusory assertion unsupported by any identifying facts or description of comparable conduct, and is wholly without factual basis for the belief. (*Ibid.*) A pleading on information and belief is insufficient if it fails to “alleg[e] such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

Ms. Sequeira’s termination, the most significant adverse action alleged, followed documented performance deficiencies, a dishonesty finding, and a sustained *Skelly* hearing, none of which she connects to her sex. Her allegation that the Notice of Final Discipline illustrates “disparate treatment of female officers” is conclusory and does not survive demurrer. (*Blank, supra*, 39 Cal.3d at 318.)

The demurrer to the first cause of action for Discrimination on the basis of sex is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

i. Harassment

Harassment under FEHA must consist of conduct outside the scope of necessary job performance, and personnel management decisions cannot form the basis of a hostile work environment claim. (See legal standard *ante* at section (V)(a)(ii) “Harassment;” *Janken, supra*, 46 Cal.App.4th at 64-65.)

Here, the vast majority of conduct alleged by Ms. Sequeira constitutes personnel management: the PIP, the Letter of Instruction, the removal from the Collateral Intelligence Unit, the Letter of Reprimand, the administrative leave, and, ultimately, the termination. These are classic supervisory management functions that sound in discrimination, not harassment. (*Roby, supra*, 47 Cal.4th at 707; *Janken, supra*, 46 Cal.App.4th at 63.)

The only conduct arguably outside the scope of personnel management is Mr. Castillo’s alleged GPS tracking of Ms. Sequeira’s location in violation of RPD policy, and his criticism of her for using the restroom at RPD’s dispatch building rather than at a gas station. (Compl. at 13:6-9.) Ms. Sequeira alleges this criticism was “in marked contrast to the treatment of other officers,” but this passing reference does not constitute a comparator allegation – it identifies no other officer, describes no comparable conduct, and provides no factual basis connecting the differential treatment to Ms. Sequeira’s sex. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.) Absent a nexus to a protected characteristic, Mr. Castillo’s conduct, even if outside the scope of supervisory management, does not constitute FEHA harassment. (*Janken, supra*, 46 Cal.App.4th at 63.)

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (See legal standard *ante* at section (V)(a)(iii) “Failure to Prevent Discrimination and Harassment;” Gov. Code, § 12940(k).) Claims for failure to prevent discrimination or harassment are derivative; if the employee has not established discrimination or harassment the failure to prevent claim necessarily fails. (*Carter, supra*, 38

Cal.4th at 925, fn. 4; *Trujillo, supra*, 63 Cal.App.4th at 289; *Dickson, supra*, 234 Cal.App.4th at 1309.)

Here, the Court finds that Ms. Sequeira fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

/. Retaliation

To state a claim for retaliation under FEHA, a plaintiff must allege that she engaged in protected activity, suffered an adverse employment action, and that a causal link existed between the two. (See legal standard *ante* (V)(a)(iv) “Retaliation;” Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042.) Protected activity consists of opposing conduct made unlawful by FEHA or participating in FEHA proceedings. (Gov. Code § 12940(h).) A complaint about perceived unfair treatment or personal grievances that does not oppose conduct prohibited by FEHA does not constitute protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

Ms. Sequeira’s retaliation claim founders at the first element. The Complaint does not identify any instance wherein Ms. Sequeira opposed conduct made unlawful by FEHA or participated in any FEHA proceeding. Her allegations concern performance-related discipline, administrative leave, and the handling of the motor vehicle accident investigation – none of which involve opposition to discrimination, harassment, or retaliation based on a protected characteristic. The Complaint she lodged with RPD against Mr. Aubrey and Mr. England arising from the April 2024 accident-scene encounter concerns a perceived unlawful detention, not opposition to FEHA-prohibited conduct. A complaint about perceived mistreatment unconnected to a protected characteristic does not constitute protected activity under FEHA. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

The retaliation cause of action itself alleges only that Ms. Sequeira “opposed” Defendants’ discrimination, harassment, and retaliation, and that such opposition was a substantial motivating reason for Defendants’ conduct. (Compl. at 25:10-20.) These are bare conclusory recitations of the elements of retaliation that identify no specific act of protected opposition by Ms. Sequeira and provide no factual basis connecting any complaint to any adverse action. Such allegations are insufficient to state a claim. (*Blank, supra*, 39 Cal.3d at 318.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

c. Ms. Woody

i. Discrimination (Sex)

It is an unlawful employment practice under FEHA to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a); see legal standard *ante* at section (V)(a)(i) “Discrimination (Sex, Race, and Sexual Orientation).”)

Here, Ms. Woody is a member of a protected class as she is a woman. (Compl. at 19:13-14.)

Ms. Woody alleges a series of commendations and praise for her work during her tenure with RPD. (Compl. at 16:18-25.) She adequately alleges competent performance.

Ms. Woody’s adverse employment actions are relatively limited; the only concrete adverse employment actions alleged are two Letters of Instruction for report preparation issued on December 30, 2023, and September 20, 2024, and the un-sustained complaint regarding the April 2024 accident scene incident with Ms. Sequeira. (Compl. at 18:4-5, 22-23.) Notably, the Letters of Instruction were issued contemporaneously with a performance appraisal reflecting exemplary performance and precise, well-structured reports – a contradiction the Complaint does not attempt to explain. (*Id.* at 18:25-28.)

Ms. Woody fails, however, to allege any nexus between her sex and any of the above adverse employment actions. Her allegation that Mr. Castillo singled her out for unwarranted criticism and adverse employment actions is a single conclusory paragraph identifying no specific incident, date, or conduct. (Compl. at 16:26-28.) Her comparator allegation – that nonprotected officers were not subject to the same treatment as to the Letters of Instruction – is alleged on information and belief without identifying any comparator or providing any factual basis for the belief. (Compl. at 18:22-24.) These conclusory allegations on information and belief are insufficient to support an inference of discriminatory motive. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

The demurrer to the first cause of action for Discrimination on the basis of sex is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

i. Harassment

As discussed *ante*, a Harassment claim under FEHA must consist of conduct outside the scope of necessary job performance. (See legal standard *ante* at section (V)(a)(ii) “Harassment;” *Janken, supra*, 46 Cal.App.4th at 64-65.)

The Letters of Instruction issued to Ms. Woody for report preparation are squarely within the category of personnel management and cannot constitute harassment as a matter of law. (*Janken, supra*, 46 Cal.App.4th at 64-65.) The allegation that Mr. Castillo singled Ms. Woody out for unwarranted criticism and adverse employment actions fares no better – it is a single conclusory paragraph identifying no specific conduct and *a fortiori* cannot establish the severe or pervasive pattern required to state a Harassment claim.

The April 2024 accident-scene encounter with Mr. England and Mr. Aubrey is the only alleged conduct arguably outside the scope of supervisory management. However, this incident does not support a Harassment claim for two independent reasons. First, even considering the totality of the circumstances, a single encounter of this nature does not plausibly allege conduct sufficiently severe or pervasive such that it altered the conditions of Ms. Woody’s employment it created an abusive working environment. (*Miller v.*

Department of Corrections (2005) 36 Cal.4th 446, 462.) Second, and independently, the incident arose in the context of the investigation into Ms. Sequeira's motor vehicle accident – not because of Ms. Woody's sex or any other protected characteristic. Harassment must be based on the plaintiff's membership in a protected class to be actionable under FEHA. (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170.)

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (See legal standard *ante* at section (V)(a)(iii) "Failure to Prevent Discrimination and Harassment;" Gov. Code, § 12940(k).) Claims for failure to prevent discrimination or harassment are derivative; if the employee has not established discrimination or harassment the failure to prevent claim necessarily fails. (*Carter, supra*, 38 Cal.4th at 925, fn. 4; *Trujillo, supra*, 63 Cal.App.4th at 289; *Dickson, supra*, 234 Cal.App.4th at 1309.)

Here, the Court finds that Ms. Woody fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

j. Retaliation

To state a claim for retaliation under FEHA, a plaintiff must allege that she engaged in protected activity, suffered an adverse employment action, and that a causal link existed between the two. (See legal standard *ante* (V)(a)(iv) "Retaliation;" Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042.) Protected activity consists of opposing conduct made unlawful by FEHA or participating in FEHA proceedings. (Gov. Code § 12940(h).)

Ms. Woody's Retaliation claim fails at the first element for the same reason as Ms. Sequeira's – the Complaint does not identify any instance in which Ms. Woody opposed conduct made unlawful by FEHA or participated in any FEHA proceeding.

Ms. Woody's only arguable protected activity is her April 2024 complaint against Mr. England and Mr. Aubrey arising from the accident-scene encounter. However, as discussed *ante*, that complaint concerned a perceived unlawful detention during the course of an investigation, not an opposition to discrimination, harassment, or retaliation based on a protected characteristic. A complaint about perceived unfair treatment or personal grievances that does not oppose conduct prohibited by FEHA does not constitute protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

As with Ms. Sequeira, the retaliation cause of action itself alleges only that Ms. Woody "opposed" Defendants' discrimination, harassment, and retaliation, without identifying any specific act of protected opposition or providing any factual basis connecting a complaint to any adverse action. (Compl. at 25:10-14.) These are bare, conclusory recitations of elements insufficient to state a claim. (*Blank, supra*, 39 Cal.3d at 318; *Doe, supra*, 42 Cal.4th 531, 551, fn. 5.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

VI. Conclusion

For the foregoing reasons, Defendants City of Richmond and Richmond Police Department's demurrer to the first through seventh causes of action is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all applicable Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

Before the Court is Defendant Jessica Michaelson Zapruder, Defendant Michael Zapruder, and Defendant Marjorie Zapruder (collectively, “Defendants”)’s Demurrer. The Demurrer relates to Plaintiff State Farm General Insurance Company (“State Farm” or “Plaintiffs”)’s subrogation complaint for (1) negligence and (2) breach of contract.

Defendant demurs to Plaintiff’s cause of action for breach of contract pursuant to Code of Civil Procedure (“CCP”) § 430.10(e) on several grounds.

For the following reasons, the Demurrer is **overruled-in-part** with respect to Jessica Michaelson Zapruder and Michael Zapruder, but **sustained-in-part** with leave to amend with respect to Marjorie Zapruder.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

This is a subrogation case for damages. State Farm alleges that their insured, Cameron Smith, leased the property at 421 Kahrs Avenue, Pleasant Hill, California 94523 to Jessica Zapruder and Michael Zapruder. (Marjorie Zapruder was added as a Defendant by doe amendment on January 1, 2026.) Plaintiff alleges on July 12, 2024 Defendants “caused a Weber Genesis propane fueled grill to catch fire which then spread and communicated to Plaintiff’s Insured’s

subject rental property, causing extensive property damage." (Complaint at ¶ 8.) Plaintiff further alleges that Defendants breached Lease provisions 1.16, 2.6, 2.7, 3.3, and 3.17. (*Id.* at ¶ 19.)

Analysis

Defendants argue that "Plaintiff's allegations, even if taken as true for purposes of demurrer, do not establish that Defendants breached any specific and enforceable contractual duty imposed by these lease provisions." (Dem. at 4:12-13.) The Court addresses each challenged lease provision alleged in the Complaint in turn.

Section 1.16

Section 1.16 [Tenant Insurance] of the Lease provides that "Landlord shall not insure Tenant for any personal injury or property damage. Tenant is: Required to buy and maintain renters or liability insurance. Tenant shall provide Landlord with evidence of required insurance prior to Tenant moving into Premises and upon request during the Term."

In connection with this section, the Complaint alleges that Defendants "compelled Plaintiff's insured to file a first-party insurance claim with its own carrier, State Farm General Insurance Company, in connection with the subject rental property following the incident that occurred on July 12, 2024." (Complaint at ¶ 20.)

The implication of this allegation is that Defendants did not buy and maintain renters or liability insurance which covered the loss on July 12, 2024. (A fact which is not expressly alleged in the Complaint.) However, as Defendants note, this interpretation characterizes section 1.16 as an indemnity provision, which would obligate Defendants to "indemnify the landlord or the landlord's insurer, or to ensure the landlord's ability to avoid a first-party insurance claim." (Dem. at 9:12-13.) That interpretation is not supported by the plain text of Section 1.16, which merely requires tenants to buy and maintain renters or liability insurance. And, as noted above, the Complaint does not actually allege that Defendants failed to obtain or provide required evidence of insurance.

Plaintiff has failed to allege a breach of section 1.16 of the lease agreement.

Section 2.6

Section 2.6 [Condition of Premises] of the Lease provides that:

Tenant acknowledges that prior to occupying the Premises, Tenant has examined the Premises and is satisfied with the condition, subject to those items specifically stated on the Property Condition Report (or like-titled document). By accepting possession of the Premises, Tenant acknowledges and agrees that no repairs or cleaning are required or requested. Tenant agrees and accepts the Premises “As Is” condition except for conditions causing the premises to be untenable under California Civil Code 1941.

The Complaint alleges that Defendants “breached this provision by causing a fire that damaged the home. They accepted the property in ‘As Is’ condition and agreed no repairs were needed. By causing significant damage, the tenant failed to maintain the condition of the property as agreed following the incident that occurred on July 12, 2024.”

Defendants argue that the move-in acknowledgment of the as-is condition of the premises does not create “an ongoing obligation to maintain the property in perpetuity as it was on move-in.” (Dem. at 9:26-27.)

Plaintiff argues in opposition that when section 2.6 is read in conjunction with section 3.12 of the lease, it created an obligation with Defendants “to return the Subject Property in good order, an obligation that was clearly breached as a result of the substantial damage caused by the fire loss incident.” (Opp. at 5:13-15.) However, the Complaint does not plead a breach of section 3.12.

Consequently, the Court declines Plaintiff’s invitation to read the two sections together.

Read in isolation, section 2.6 does not appear to impose an ongoing “as-is” maintenance obligation, such that Defendants would be required to continuously maintain the Premises in the same state that it was upon move in.

Plaintiff has failed to allege a breach of section 2.6 of the lease agreement.

Section 2.7

Section 2.7 [Notification of Building Problems or Repairs Needed] reads:

Tenant shall keep the Premises in good order and condition, and immediately pay for any repairs caused by Tenant’s negligence or misuse, that of their guests or Additional Occupant(s). Tenant agrees to notify Landlord immediately upon first discovering any repairs or maintenance needed, or signs of serious building

problems, including but not limited to: a crack in the foundation, a tilting porch, a crack in the plaster or stucco, moisture in the ceiling, buckling sheetrock or siding, a leaky roof, a spongy floor, any leaking or running water, appliance malfunction, and/or electrical shorting or sparks. Failure to report a problem may create a situation where the Tenant will be liable for damages due to the problem not being addressed sooner. Notwithstanding anything to the contrary in this Agreement, Landlord will pay for repairs of conditions that materially affect the health or safety of an ordinary resident (i.e., dangerous or hazardous conditions).

(Complaint at Ex. A § 2.7 [emphasis original].)

The Complaint alleges that Defendants “breached this provision by negligence and misuse of the Genesis propane fueled grill on the premises that caused a fire that damaged the home.” (Complaint at ¶ 21.)

Defendants argue that the Complaint does not plead any violation of the “core duties” imposed by Section 2.7, such as the duty “to promptly notify the landlord of a condition needing repair, or refusal/failure to perform a listed repair[.]” (Dem. at 10:13.)

Section 2.7 of the lease obligated Defendants to “keep the Premises in good order and condition.” The Complaint alleges that this provision was breached when Defendants allegedly caused the fire which damaged the property. (Complaint at ¶ 21.) This is sufficient to allege a breach of this provision of the lease agreement.

Section 3.3

Section 3.3 [Hazardous Materials] of the lease provides that: “Tenant shall not keep on the Premises any item of a dangerous, flammable, or explosive character that might unreasonably increase the danger of fire or explosion on the Premises, or that might be considered hazardous or extra hazardous by any responsible insurance company.”

The Complaint alleges that Defendants breached this provision “by operating a Genesis propane fueled grill on the premises, resulting in a fire. The presence and use of flammable materials, including the propane tank, unreasonably increased the risk of fire and created a hazardous condition, in direct violation of the lease provision prohibiting dangerous, flammable, or explosive items[.]”

(Complaint at ¶ 22.)

Defendants argue that [t]he mere presence and ordinary operation of a propane grill is not an item ‘of a dangerous, flammable, or explosive character’ within the meaning of Section 3.3, and its use is not a per se lease violation.”

Defendants further argue that in the absence of a specific prohibition on propane grills in the lease, their use is not a violation of the lease term. The Court cannot agree.

The Complaint has sufficiently alleged a breach of section 3.3 of the lease agreement.

Section 3.17

Section 3.17 [Attorney / Collection Fees] provides for the recovery of attorneys’ fees “should it become necessary for Landlord to employ an attorney to enforce any of the conditions or covenants hereof, or a collection company to recover any financial loss, including the collection of rents or gaining possession of the Premises.”

Defendants argue that “[s]ince Plaintiff’s contract claims are not viable under the aforementioned lease provisions, any demand for fees is not supported by the contract and should be rejected.” (Dem. at 11:8-10.) However, as described further above, Plaintiff has successfully alleged a breach of at least two provisions of the lease agreement. As a consequence, the demurrer on this ground is overruled.

Conclusion

Because a demurrer will not lie to a part of a cause of action, the Demurrer in its entirety must be overruled. (*Elder v. Pacific Bell Telephone Company* (2012) 205 Cal.App.4th 841, fn. 14 [“Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.”]; see also *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”].)

Here, Plaintiff has alleged a breach of at least one section of the lease agreement. Notwithstanding the pleading deficiencies with respect to the other sections of the lease agreement, that is sufficient to **overrule** Jessica Michaelson Zaprunder and Michael Zaprunder’s Demurrer to Plaintiff’s breach of contract cause of action.

However, with respect to Defendant Marjorie Zapruder, the Court notes that she was added through a Doe Amendment on January 20, 2026. She is not a signatory to the lease. Plaintiff's attachment of a co-signer agreement executed by Marjorie Zapruder in opposition is unavailing, as this document is neither referenced nor attached to the Complaint. As filed, the Complaint does not state any causes of action against Marjorie Zapruder. For that reason, the Marjorie Zapruder's demurrer to Plaintiff's breach of contract cause of action is **sustained**, with leave to amend. The Court encourages Plaintiff to revisit their breach of contract allegations as discussed above in any amended pleading.

Amended pleading to be filed within 15 days of service of notice of entry of this Order.

11. 9:00 AM CASE NUMBER: C25-02684
CASE NAME: DAN FOSTER, JR. VS. NOEL FUNEZ
*HEARING ON MINOR'S COMPROMISE AS TO THOMAS JOSEPH FOSTER
FILED BY: FOSTER, DAN, JR.
TENTATIVE RULING:

Before the Court is the Petition of Thomas Joseph Foster for Approval of Compromise of a Minor's Claim of Action (Petition). After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim submitted March 16, 2026.

12. 9:00 AM CASE NUMBER: C25-02684
CASE NAME: DAN FOSTER, JR. VS. NOEL FUNEZ
*HEARING ON MINOR'S COMPROMISE AS TO JERAMIAH LEE FOSTER
FILED BY: FOSTER, JERAMIAH LEE
TENTATIVE RULING:

Before the Court is the Petition of Jeremiah Lee Foster for Approval of Compromise of a Minor's Claim of Action (Petition). After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed

Order Approving Compromise of Minor's Claim submitted March 16, 2026.

13. 9:00 AM CASE NUMBER: C25-02976
CASE NAME: LILIA ORTEGON VALBUENA VS. BRIAN FAULKNER
*HEARING ON MOTION IN RE: STRIKE
FILED BY: FAULKNER, BRIAN
TENTATIVE RULING:

Motion cancelled by moving party.

14. 9:00 AM CASE NUMBER: C25-03127
CASE NAME: SANDRA FUNES VS. KEVIN KIRKPATRICK
HEARING IN RE: MOTION TO WITHDRAW AS PLTF'S COUNSEL - SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:

The court grants the unopposed motion of attorney Carlo A. Rolando to be relieved as counsel for Plaintiff Sandra Funes. The court will sign the order submitted to the Court on May 15, 2026 on form MC-053. The order will become effective upon the filing of the proof of service of the signed order upon the client, Sandra Funes.

15. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT IMPOSE MONETARY SANCTIONS OF UP TO \$1,000 ON PLAINTIFF CECILY TAYLOR FOR SUBMITTING NON-EXISTENT, FALSE LEGAL AUTHORITY TO THE COURT & MISREPRESENTING THE HOLDINGS AND CONTENT OF EXISTING LEGAL AUTHORITY TO THE COURT.(PER TR ON 4/10/26)
FILED BY:
TENTATIVE RULING:

Notice: This decision contains references to invalid citations in the original text of the opinion. They are relevant to the decision and therefore have not been editorially corrected.

On February 13, 2026, Plaintiff Cecily Taylor filed a Motion to Stay All Further Proceedings Pending Resolution of Motion to Disqualify Counsel (“Motion”)

In support of that Motion and attached to it, Plaintiff submitted a Memorandum of Points and Authorities. As the Court noted in its Tentative Ruling posted on April 10, 2026, it appears that Plaintiff may have relied on using Artificial Intelligence (AI) to assist with preparing her brief. Most, if not all, of the citations are either non-existent or do not stand for the proposition asserted.

Plaintiff’s notice indicates that the Court has authority to stay the action under Code of Civil Procedure section 371.5. While the Code of Civil Procedure contains a § 371 and § 372, it does not contain a § 371.5.

The main body of Plaintiff’s motion relies on Code of Civil Procedure §§ 128 (a)(3) and 373.5. Plaintiff asserts that § 128 (a)(3) provides that “every court has the inherent power ‘to issue any order necessary to the exercise of its jurisdiction.’” (Motion at 4:13-16.) Section 128 (a)(3) actually states that the court has the power: “To provide for the orderly conduct of proceedings before it, or its officers.” The language cited by Plaintiff appears nowhere in the statute.

Plaintiff also contends that § 373.5 “expressly authorizes the Court to ‘stay the proceedings in the action or any part thereof’ whenever ‘irreparable injury would result from a continuance of the action.’” (Motion at 4:26-5:1.) Again, neither of those quotations appear in that statute. Instead, § 373.5 pertains to appointment of guardian ad litem where unascertained persons of designated class are interested in property. This has nothing to do with the Court’s inherent power to stay proceedings.

Plaintiff’s citation to case authority fares no better. She cites to *Landis v. North American Co.* (1936) 299 U.S. 248, 254-55 for the proposition that courts may suspend proceedings “for the purpose of justice.” (Motion at 4:16-20.) First off, that quotation appears nowhere in that case. Second, that case discussed the propriety of issuing a stay where a similar action was filed in a completely different venue. That situation does not apply here. Likewise, Plaintiff’s citation to *Mowrer v. Superior Court* (1969) 3 Cal.App.3d 223, 227-28 does not support the parenthetical Plaintiff provides related thereto. That case did not involve a stay but instead dealt with contempt proceedings. Issues not relevant to the

current motion.

Finally, Plaintiff cites *Freiberg v. City of Santa Ana* (1985) 167 Cal.App.3d 332, 338 for the proposition that good cause need only show prejudice or inefficiency. (Motion at 5:17-18.) A search for that citation brings up the case of *Barbary Coast Furniture Co. v. Sjolie* (1985) 167 Cal.App.3d 319 – which runs through page 335. The pin cite to page 338 refers to the case *Ciampi v. Red Carpet Corp.* (1985) 167 Cal.App.3d 336. The Court has been unable to locate a case styled as *Freiberg v. City of Santa Ana*.

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held:

[R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: “A fake opinion is not ‘existing law’ and citation to a fake opinion does not provide a non-frivolous ground for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system.” (citations omitted) *Noland*, supra, 114 Cal. App. 5th at 445.

As noted by the *Nolan* court, it is a fundamental duty of attorneys to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. (*Ibid.*) Failing to do so is sanctionable conduct.

While *Nolan* involves an attorney’s actions in providing false and misleading authority to the court, the same principles apply to non-represented parties. “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*) “Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per.” (*Ibid.*)

“[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants ‘must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.’” (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

In its ruling denying Plaintiff’s Motion to Stay Proceedings and Disqualify Counsel, the court issued an Order to Show Cause for Plaintiff to appear on Friday May 8, 2026 at 9:00 a.m. in Department 32, and show cause, if cause there be, why the court should not impose monetary sanctions of up to \$1,000 for submitting non-existent, that is, false legal authority to the Court, and for misrepresenting the holdings and content of existing legal authority to the Court. Any response by Plaintiff to this Order to Show Cause must be in writing and must be filed and served on all parties or before noon on May 1, 2026.

On May 1, 2026, the court on its own motion continued the hearing on the Order to Show Cause to June 12, 2026 at 9:00 a.m. in Dept. 32.

On June 1, 2026, Plaintiff filed a pleading styled, “Plaintiff Cecily Taylor’s Opposition to Defendants’ Motion for Sanctions and Response to Order to Show Cause re: Sanctions, Memorandum of Points and Authorities; Declaration of Cecily Taylor” (“Plaintiff’s June 1 Opposition”) in which she stated:

“Any citation issues or inaccuracies in my February 13, 2026 Motion to Stay All Further Proceedings were made in good faith based on the extremely limited resources available to me at the time. They were not made with any intent to mislead the Court or to harass Defendants.” (Plaintiff’s June 1 Opposition, 7:21-26.)

The court is disappointed in Plaintiff’s Response to the OSC. She does not state how she arrived at non-existent court citations or how she could, in good faith, have cited cases for propositions that do not appear in the cases. She states only that she had “extremely limited resources” and that these citations were not made with intent to defraud. She does not state whether she used an AI

engine and submitted those results to the court without confirming the validity of those case citations.

It is a fundamental duty of attorneys and non-attorneys alike to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. The court believes that both attorneys and non-attorneys alike must be on notice that AI engines have a risk of generating false or “hallucinated” results to queries of any kind -- legal citations included -- and that results obtained through AI need to be verified before submission to court. A trip to one’s county law library can help one determine whether citations are *bona fide*, and in addition whether *bona fide* citations are currently “good” law.

The court imposes a sanction of \$50 on Plaintiff, due and payable within 45 calendar days of this order to the Contra Costa Superior Court. In the alternative, Plaintiff may visit a county law library, learn how to verify legal citations with the assistance of a law librarian, and submit a minimum 500 word essay describing how to verify legal citations obtained from AI. In addition to this essay, Plaintiff must also submit a declaration from a law librarian describing under penalty of perjury [1] their name and job, and [2] what resources for verifying legal citations he or she explained to Plaintiff on what date. If Plaintiff opts to submit an essay and a law librarian’s declaration, these documents are due to be filed and served within 45 calendar days of this order. Every county in California has a law library. The law library in Contra Costa County is located at 1026 Escobar Street, Suite 2C, Martinez, CA 94553.

Failure either to pay the sanction or submit an essay and declaration in a timely fashion may result in further monetary sanctions. Forty five days from June 12, 2026 is July 27, 2026.

16. 9:00 AM CASE NUMBER: C26-00225
CASE NAME: MONTE DAVIS VS. VINCENT RODRIGUEZ
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT RE: VINCENT RODRIQUEZ
FILED BY: RODRIGUEZ, VINCENT
TENTATIVE RULING:

The unopposed motion to set aside the default of Vincent Rodriguez is granted. The default taken on March 16, 2026 is set aside. Defendant Vincent Rodriguez must file a responsive pleading within 15 calendar days of June 12, 2026.

17. 9:00 AM CASE NUMBER: MSC20-00798
CASE NAME: DAVEN VS. WING ENTERPRISES NKA LITTLE GIANT LADDERS SYSTEMS, LLC
HEARING ON ORDER TO SHOW CAUSE IN RE: CONT'D FROM 5/29/26 / WHY SANCTIONS OF
\$2,000.00 SHOULD NOT BE IMPOSED ON PLAINTIFF'S COUNSEL, MICHAEL J. BROWN, FOR FAILURE
TO OBEY COURT ORDERS / CONT'D FROM 5/29/26. SEE M/O
FILED BY:
TENTATIVE RULING:

The court issued a written order to show cause to Michael Brown, counsel for Plaintiff in writing on April 8, 2026.

PLEASE TAKE NOTICE THAT YOU ARE ORDERED TO APPEAR MAY 29, 2026 AT 9:00 a.m. in Department 32 of the above-entitled court at 725 Court Street, Martinez, California, and show cause, if cause there be, why monetary sanctions of up to \$2000 should not be imposed and why the clerk of the court should not be ordered to report your conduct to the State Bar for disobeying an order of the court in cross examining expert witnesses about the content of tenor of any scientific, technical or professional text, treatise, journal or similar publication without first complying with Evid. Code Section 721. Any response to this OSC must be filed and served at least five court days prior to this hearing.

On May 29, 2026, Attorney Brown appeared in Court in person. Counsel Brons for the Defendant appeared by Zoom. A copy of the court's tentative ruling was provided to Attorney Brown, who stated that he had already read it. Attorney Brown conveyed to the court that he was not feeling well, and the court continued the hearing to June 12, 2026.

The court takes judicial notice of the Reporter's Certified and partial transcripts of proceedings from Wednesday, April 1, 2026 outside the presence of the jury*; and Thursday April 2, 2026, the partial Cross Examination of Brian Russell, (Trans. pages 1-39.)

Counsel Brown, in his Response filed May 18, 2026 to the Order to Show Cause admits that during the trial he asked witness Brian Russell "Now are you aware

that Erick Knox published a paper disagreeing with that?” (Response, page 4: 5-6.) In his response, Counsel Brown does not suggest that he complied with Evid. Code Section 721 prior to asking this question. An examination of the partial proceedings from April 2, 2026 reveals he did not. His response makes no mention of the court’s prior admonishments to him on April 1 and on April 2 not to ask a question about any expert research or publication without first satisfying the requirements of Evidence Code 721(b). Counsel Brown attaches no transcript to his Response and does not deny that he had been so admonished. Instead, his Response recounts certain events and simply omits any mention of the court’s admonishments to him about Evidence Code Section 721(b).

Evidence Code Section 721(b) forbids an expert witness from being cross-examined about other research or publications unless one of three specific conditions is met. Section 721(b) provides, in relevant part,

(b) If a witness testifying as an expert testifies in the form of an opinion, he or she may not be cross-examined in regard to the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication unless any of the following occurs:

- (1) The witness referred to, considered, or relied upon such publication in arriving at or forming his or her opinion.
- (2) The publication has been admitted in evidence.
- (3) The publication has been established as a reliable authority by the testimony or admission of the witness or by other expert testimony or by judicial notice.

Prior to asking witness Brian Russell on April 2, 2026, “Now are you aware that Erick Knox published a paper disagreeing with that?” Counsel Brown had been admonished at side bar and ordered that he may not mention any studies or publications without first complying with Evid. Code Section 721(b). The court has a clear recollection that counsel Brown in at least two occasions had been instructed that he could not ask about any outside report or study without first complying with Evidence Code Section 721.*

Counsel Brown was first admonished about Evidence Code section 721(b) on April 1, 2026, during his cross examination of defense expert witness Dr. David Fortenbaugh. (Brons Decl., page 2: 3-10; page 3:11-26; page 4:14-17)* As stated

in the Brons Decl., “To my recollection, when Defense counsel Mr. Kronenberg objected, the court halted the proceedings – allowing the jury to leave, Mr. Brown was then admonished not to ask any defense witness about the Article without laying proper foundation. The Court had already ruled what type of evidence the Article was to be used as *i.e.*, that it fell within the scope of CCP Sec. 721, then Mr. Brown was supposed to identify what kind of witness is being provided the document (*i.e.* expert or non-expert), and then identify whether any of the factors under CCP Sec. 721(b) have been satisfied to allow for it to be provided to the witness, or also address whether there was another exception to the rule against hearsay. Mr. Brown did not do any of these steps.” (Brons Decl. Page 4:23 – 5:2.) The court finds the Brons Declaration’s description of the events of April 1, 2026 is consistent with her recollection of the events. On April 1, 2026, Counsel Brown was instructed not to inquire about expert research or studies without complying with Section 721(b) as follows:

The Court: So, Counsel, unless—as we discussed at the bench, unless you meet the requirements of Evidence Code 721(b), it is inappropriate to cross-examine an expert witness on a publication. So unless you can proffer that you can meet one of the three requirements, I need you to move on.

Mr. Brown: Okay.

(Transcript of Proceedings April 1, 2026, 4:20 p.m., page 1:8-14).

On April 1, 2026, after the jury was excused, Counsel Brown was specifically instructed that attempting to cross-examine a witness specifically about the Erick Knox article was “entirely inappropriate, illegal and barred under the hearsay laws.” The court’s instructions were clear and specific at the end of the day on April 1, 2026. (See colloquy in Transcript from April 1, 2026 pages 5-15.)

The court’s recollection that Counsel Brown was admonished about Evid Code Section 721(b) on April 1, 2026 is also supported by the partial transcript of proceedings on April 2, 2026. As soon as counsel Brown asked the question at issue, and counsel Kronenberg requested a sidebar, the transcript reflects that the court said, “I have made rulings *on this very subject*. You cannot try and backdoor in some kind of outside person’s opinion that has not been properly laid a foundation before the Court. (sic) Erick Knox is not here and you can’t get what

you think his opinions may or may not be into this trial by asking improper questions.” (Trans, page 26: 9-15, emphasis added).

Another transcribed verification of the court’s recollection that she ordered counsel Brown not to ask about any outside expert research or study unless he first complied with Evid Code 721(B) is in a statement by Mr. Kronenberg from the partial transcript of April 2, 2026 proceedings, at page 34:5-18, as follows.

Court: You cannot ask about any expert study or other research unless 721(b) of the Evidence Code has been satisfied. And if you are not sure what those requirements are, then you’d better not ask at all. And I’m going to make *another* order that you cannot ask about any outside expert research or study unless you have, outside the presence of the jury and to the Court’s satisfaction, satisfied Evidence Code 721(b) for cross-examining about an outside expert’s study.

Mr. Brown: Very well.

Mr. Kronenberg: And your Honor, I’m not gonna beat a dead horse. I mean, I understand that you just issued the order. **That is the identical order you issued yesterday. It didn’t work yesterday.**

Trans. Page 34: 5-18 (emphasis supplied).

The court finds by a preponderance of the evidence that attorney Michael Brown, having twice been specifically admonished by the court not to cross examine an expert witness about the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication without first complying with Evid. Code Section 721 on Wednesday April 1, 2026 and again at on April 2, 2026, asked witness Brian Russell, “Now, are you aware that Erick Knox published a paper disagreeing with that?” without first complying with section 7231(b). (Trans. Page 26: 1-3.) The court finds that this was a direct violation of the court’s order, committed in open court, on the record, in front of the jury.

The court finds that Counsel Brown’s Response to the OSC is troubling. First, Counsel Brown does not attach any transcripts to his response to the OSC. Second, it appears that Counsel Brown acknowledges that the court’s ruling preventing him from asking Dr. Fortenbaugh on April 1, 2026 about Dr. Knox’s

publication was based on Counsel Brown's failure to comply with Evidence Code section 721. (Response, page 3:17-25) Dr. Fortenbaugh did not refer to, consider or rely on an article by Erick Knox. (Brons Decl., page 3:11-12.) Thus, Counsel Brown admitted that the Court prevented him from inquiring into an article or publication on April 1, 2026 during the testimony of Dr. Fortenbaugh, and further admitted that he was instructed not to violate Evidence Code section 721(b) on April 1, 2026.

The court notes that Counsel Brown does not take acknowledge he directly violated the court's repeated orders to comply with Evidence Code Section 721(b) before asking a witness about any expert research or study. His Response omitted any mention that he had been specifically admonished to comply with Evidence Code Section 721 twice before he asked the question, "Now, are you aware that Erick Knox published a paper disagreeing with that?" And nothing in the record shows any attempt in his questioning to satisfy Section 721(b) prior to asking that question.

The court notes that Counsel Brown does not express remorse for his conduct and his choices. Indeed, Counsel Brown's Response to the OSC does not appear even to acknowledge the reason for the OSC. He does not mention any reasons that would mitigate the seriousness and the brazenness of his conduct.

The court finds that Counsel Brown by his lack of acknowledgment of the reason for this OSC demonstrates that he is at high risk for disobeying a similar court order in the future. In addition to a lack of respect for court orders, this demonstrated a disregard for the fairness of court processes.

The Court imposes a monetary sanction of \$1500 under Code of Civil Procedure 177.5 for violation of a lawful order. This sanction is due and payable to the Contra Costa Superior Court within 30 calendar days of service of notice of entry of order. Further, pursuant to Business and Professions Code Section 6086.7, the Court instructs the clerk of the Court to report these findings and orders to the State Bar of California.

*The court reserves the right to supplement this opinion with additional citations

to the certified transcript from April 1, 2026.

18. 9:00 AM CASE NUMBER: MSC22-00422

CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC

*HEARING ON MOTION IN RE: STRIKE DEFENDANT'S EXPERTS WHO WERE IMPROPERLY DISCLOSED AS SUPPLEMENTAL EXPERTS.

FILED BY:

TENTATIVE RULING:

Plaintiff's Motion to Strike Defendant's Experts Tom Kelly, Vaness Hill, and Karin Flinn-Fowler is denied.

19. 9:00 AM CASE NUMBER: N26-0028

CASE NAME: CLAIM OF: CODY RENO

*HEARING ON MINOR'S COMPROMISE

FILED BY: RENO, KRISTIN

TENTATIVE RULING:

The Petition for Approval of Minor's Compromise is granted. The court will sign the Order Approving Compromise of Claim or Action for Minor and the Order to Deposit Funds in Blocked Account lodged with the court on January 6, 2026.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C25-02631

CASE NAME: ERQIN ZHANG VS. JAMES FRAZIER, JR.

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1

FILED BY: ZHANG, ERQIN

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Erqin Zhang's Motion to Compel Further Responses to Form Interrogatories, Set One, Request for Admissions, Set One, and Request for Production of Documents, Set One, and for Sanctions filed February 2, 2026.

The motion is granted. Defendant is ordered to provide full, code compliant responses to the Form Interrogatories, Requests for Admissions and Requests for

Production of Documents.

Form Interrogatories: Where a privilege or work product objection has been asserted, Defendant shall produce a privilege log. To the extent additional information was provided for the first time in response to questions at Defendant's deposition, Defendant must amend his prior responses. A freeway is a "roadway." Defendant's assertion to the contrary is fatuous and is one of the reasons that colors the Court's finding that Defendant was not acting with substantial justification

Requests for Admissions (RFAs) must be either admitted or denied. Defendant's objection that the RFA improperly seeks the identity of experts is not well taken. The RFAs do not seek the identification of experts, merely whether Defendant admits the assertion or not.

With regard to the Requests for Production of Documents (RFDs), the Defendant's objection to "any and all" is not well taken. This is a single incident, on a single day with a limited number of percipient witnesses. "Any and all" documents regarding the issue of negligence in a traffic accident is reasonable. Defendant did not assert any privilege or work product protection in its responses. Therefore such documents should be produced. Merely stating that Defendant will produce a copy of the police report *is* responsive, but insufficient. (Note: If the "report supports the opposite" that does not make it non-responsive.) "After diligent search and inquiry no documents exist," is a good start, but Plaintiff is within his rights to demand whether documents ever existed or never existed, and if they ever existed whether it has been lost, stolen, etc., per CCP § 2031.230.

Defendant's response to No. 17 "not applicable" was in apt. Defendant did not give unqualified admissions, and therefore this request was applicable.

Defendant needs to be more specific as to whether or not documents exist, per CCP § 2031.230. This "not applicable" response was another indication to the Court that the Defendant was not acting with substantial justification.

Sanctions

The Court finds that the Li Declaration in support of the amount of attorneys' fees

at \$5000 is conclusory. It does not state counsel's hourly billing rate nor the amount of time spent in preparing this motion.

The court finds that Defendant has not acted with substantial justification. The Defendant is ordered to produce code-compliant responses within 30 days of service of notice of entry of this order.

Given the relative brevity of the pleadings in this case, (Memorandum of Points and Authorities: 5 pages, Separate Statement 16 pages, Reply Brief, 5 pages), the number of items at issue (6 Form Interrogatories, 6 RFAs, and 7 RFDs), the relative simplicity of the issues, and assuming Counsel Li is an attorney with many years of experience handling such matters (as stated in the Li Declaration), the Court finds it appropriate to award sanctions in the amount of \$3000.00. This amount is due within 30 calendar days of service of notice of entry of this order upon Defendant.

Issue Conferences

21. 10:00 AM CASE NUMBER: MSC21-02370

CASE NAME: MALIK VS. FIERRO

ISSUE CONFERENCE WITH THE COURT

FILED BY:

TENTATIVE RULING:

Parties to appear.

22. 10:00 AM CASE NUMBER: MSC22-00188

CASE NAME: PERUMAL VS. MAYARI DEVELOPMENT

ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

Parties to appear.

Courtroom Clerk's Session

23. 1:30 PM CASE NUMBER: MSC22-00422

CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC

ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

Parties to appear.